

Department of Local Affairs

Division of Housing

RULES GOVERNING FACTORY-BUILT STRUCTURES, INCLUDING RESIDENTIAL AND COMMERCIAL MODULAR STRUCTURES, MANUFACTURED HOMES, AND TINY HOMES; AND FOR HOTELS, MOTELS, AND MULTI-FAMILY STRUCTURES IN AREAS OF COLORADO WITH NO BUILDING DEPARTMENT

8 CCR 1302-14

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

Rule 1. Definitions

In addition to the definitions provided in section 24-32-3302, C.R.S., the following definitions apply to these rules:

- 1.1 “Authorized quality assurance representative” as defined in section 24-32-3302(1), C.R.S., means a “third-party agency” (defined in Rule 1.46) approved by the Division of Housing.
- 1.2 “Authority Having Jurisdiction” means an organization, political subdivision, office, or individual charged with the responsibility of administering and enforcing the provisions of the applicable building code. The authority having jurisdiction shall include a state agency or a local building department.
- 1.3 “Building contractor” (also a general contractor) means any individual or business entity who for compensation directs, supervises, or undertakes installation site preparation for or on-site construction (OC) work on a factory-built structure.
- 1.4 “Built-for-purpose trailer” means a vehicle trailer that is built to serve as a construction platform for a tiny home and has: a Vehicle Identification Number (VIN), a Gross Vehicle Weight Rating (GVWR), and is capable of sustaining and moving the tiny home.
- 1.5 “Certificate of Occupancy” means a certificate issued by the Division of Housing stating at the time of issuance the structure was built in compliance with all applicable codes and construction standards adopted by the State Housing Board. It only applies to motels, hotels, and multi-family structures in those areas of the state where no such standards exist through a local government.
- 1.6 “Certificate of Rough Installation” or “CORI” means a record of installation documented in a format prescribed by the Division of Housing which asserts that the fire suppression system has been installed in accordance with the Division’s codes, standards, rules, and regulations pertinent to fire suppression systems. The CORI must accompany a complete set of design documents created by the

design professional in accordance with these rules from the manufacturer to the installation site.

- 1.7 “Certified” is the status given by the Division of Housing to an installer, independent contractor, or manufacturer after submission of an application and required documentation set in rule shows compliance with the minimum performance standards for quality control of their respective registration requirements and approved by the Division. A business entity performing installations may become certified only when all registered installers within that entity have been certified. A certified individual installer registered under the business entity is authorized to only certify an installation they supervised completion of in compliance with Rule 1.12.
- 1.8 “Certified inspector” means one of the following individuals authorized by the Division of Housing:
 - 1.8.1 An “independent contractor” as defined pursuant to section 24-32-3302(15), C.R.S., that is authorized by the Division of Housing to perform or enforce installation inspections,
 - 1.8.2 An employee of a “state” or “firm” as used in the definition of a “quality assurance representative” pursuant to section 24-32-3302(30), C.R.S., and further defined in Rule 1.46.2 of these rules, or
 - 1.8.3 A Colorado-licensed design professional that is authorized by the Division of Housing to perform an on-site construction inspection and oversight manufacturer inspection.
- 1.9 “Closed panel system” means a building component or assembly built off-site that may include electrical, plumbing, mechanical, or insulation with finishes applied to both sides and then transported to be erected on-site to complete a residential or nonresidential building.
- 1.10 “Component” means a portion of a building system that, when completed, is not a unit.
- 1.11 “Conflict of interest” means when there is personal or private interest(s) sufficient to influence or appear to influence the proper exercise of duties or responsibilities.
- 1.12 “Direct on-site supervision” as used in section 24-32-3315(1)(b)(I), C.R.S., means the registered or certified installer must be present at the installation “site” as defined by section 24-32-3302(33), C.R.S., and readily available to properly supervise installation work as defined by section 24-32-3302(16), C.R.S., that is performed by an employee not registered or certified as an installer.
- 1.13 “Down payment(s)” as used in section 24-32-3325(2)(b), C.R.S, and Rules 4.6, 9.3, 9.4, 9.12, and 9.13, means all money given by a purchaser to a seller for the

purchase of a manufactured home or tiny home before the manufactured home or tiny home is delivered.

- 1.14 “Emergency response unit” as used in Rule 2.16.3 is a facility or structure that may be used if a local government declares a state of emergency. Emergency response units may meet modified standards or use alternate materials or methods of construction. Emergency response units may be rapidly deployed by government agencies or humanitarian organizations, and provide immediate, short-term housing to individuals or families displaced by an emergency, such as a natural disaster or other urgent event.
- 1.15 “Factory-built” means the construction of nonresidential structures or residential structures (modular homes, tiny homes, or multi-family structures) that occurs at an off-site location (e.g., manufacturing plant, small business space or school workshop, or private barn), separate from the site where the structure is to be installed.
- 1.16 “Fire Inspector II” means an individual who has an International Code Council 67 Fire Inspector II credential, National Fire Protection Association (NFPA) Fire Inspector II, fire protection engineer, or equivalent credential approved through the Division of Housing, or through the Colorado Division of Fire Prevention and Control.
- 1.17 “Fire suppression system” means a fire suppression system (or components thereof) manufactured, assembled, or tested at a centralized manufacturing location prior to being transported to its final installation site, or is assembled, tested, and installed on-site.
- 1.18 “Fire suppression system contractor” means an individual or business entity that is approved to undertake, represents itself as being able to undertake, or does undertake to sell, lay out, fabricate, install, modify, alter, repair, maintain, or perform maintenance inspections on a fire suppression system in International Building Code (IBC, commercial or residential) or International Residential Code (IRC) residential occupancies. Individuals or businesses may hold Division of Housing-approved credentials or be registered as a fire suppression system contractor with the Colorado Division of Fire Prevention and Control. Contractors only installing fire suppression systems in IRC residential occupancies need to refer to the definition of a “residential fire suppression system contractor” in Rule 1.40.
- 1.19 “Fire suppression system designer” means an individual who is a fire protection engineer, National Institute for Certification in Engineering Technologies (NICET) Level III or higher, or equivalent credential approved by the Division of Housing, or through the Colorado Division of Fire Prevention and Control to design fire suppression system.

- 1.20 “Fire suppression system plan reviewer” means an individual who has an International Code Council F3 Fire Plans Examiner credential, National Fire Protection Association (NFPA) Plans Examiner, fire protection engineer, or equivalent credential approved through the Division of Housing or through the Colorado Division of Fire Prevention and Control.
- 1.21 “Firm” as used in the definition of an “independent contractor” pursuant to section 24-32-3302(15), C.R.S., and in the definition of a “quality assurance representative” pursuant to section 24-32-3302(30), C.R.S., means a “third-party agency” (defined in Rule 1.46 below).
- 1.22 “HUD-code home” means a manufactured home constructed in compliance with the “National Manufactured Housing Construction and Safety Standards Act of 1974”, 42 U.S.C. sec. 5401 et seq., and any standard promulgated by the Secretary of the U.S. Department of Housing and Urban Development (HUD) pursuant to that federal act.
- 1.23 “Individual” as used in the definition of an “independent contractor” pursuant to section 24-32-3302(15), C.R.S., means a Colorado-licensed design professional authorized by the Division of Housing to perform or enforce installation inspections and registered with the Division as defined in Rule 1.38.
- 1.24 “Insignia” means a seal, label, or tag issued by the Division of Housing that when permanently affixed to a structure confirms compliance as one of the following:
- 1.24.1 An “insignia of approval” pursuant to sections 24-32-3303(1)(c), 24-32-3311(1)(a), 24-32-3311(1)(a.5), 24-32-3311(1)(b), 24-32-3311(4), 24-32-3311(5), C.R.S., issued by the Division of Housing or an “authorized quality assurance representative” pursuant to sections 24-32-3302(1), 24-32-3303(1)(c), 24-32-3304(1)(e), 24-32-3311(1)(a), 24-32-3311(1)(b), 24-32-3311(4), and 24-32-3311(5), C.R.S., verifies that a factory-built structure is deemed to be designed and constructed in compliance with the requirements of all codes and standards enacted or adopted by the State.
- 1.24.2 A “certificate of installation” as defined pursuant to section 24-32-3302(3), C.R.S., and issued by the Division of Housing or a party authorized by the Division, verifies compliance with the installation standards established by the State Housing Board in Rules 2.21 through 2.24 of these rules.
- 1.25 “Installation Authorization” pursuant to sections 24-32-3317(1), 24-32-3317(2), and 24-32-3317(4), C.R.S., means a Division of Housing-approved form posted on the site of an installation, outside the boundaries of a “participating jurisdiction” as defined in Rule 1.31, verifying that the home owner or registered installer has made application with the Division to install a manufactured home or a tiny home and has received authorization to install it, or that the home will be

installed by a certified installer who has automatic authorization to do so under their certified status.

- 1.26 “Multi-family structure(s)” means a commercial-use structure containing at least three independent dwelling units within an International Building Code (IBC) Group R-2, R-3, or R-4 building; or a residential use structure built to the International Residential Code (IRC) Townhouse building provisions. Such commercial uses are limited to apartments, condominiums, live-work units, vacation time shares, and other similar uses with independent dwelling units where the building is used, intended, or designed to be built, used, rented, leased, let, or hired out to be occupied, or that are occupied for living purposes.
- 1.27 “No cover” means no materials, appliances, or equipment should be concealing any component specifically requested to be exposed for inspection by the Division of Housing or its authorized third-party agency or required for rough inspection per the adopted codes in these rules.
- 1.28 “Occupancy” or “Occupied” means a factory-built structure, manufactured home, or tiny home designed, built, modified, or used with the intent for individuals to enter.
- 1.29 “On-site Construction” or “OC” means on-site construction or modification of the factory-built structure that directly relates to the durability, quality, and safety; that is completed at the installation “site” as defined by section 24-32-3302(33), C.R.S.; using components not installed at the manufacturer’s location; and to complete the compliance of that structure as reflected in the Division of Housing-approved plans. These items do not include the component(s) required for setting and securing the structure for its installation. Fire suppression systems that are built and installed on-site are considered OC.
- 1.30 “Open construction” means any building component, assembly, or system manufactured in such a manner that all concealed parts or processes of manufacture can be readily inspected at the building site without disassembly, damage, or destruction, e.g., panelized construction assembled on-site, or units that arrive onsite for a no cover inspection by local jurisdiction. Note: Assembled rooms or spaces, panels with finishes applied to both sides and electrical wiring in conduit are not open construction, but rather a “closed panel system” as defined pursuant to Rule 1.9.
- 1.31 “Participating jurisdiction” means a “local government” as defined pursuant to section 24-32-3302(18), C.R.S., which has agreed to administer and inspect manufactured housing installations and conduct on-site construction inspections within the legal boundaries of the jurisdiction and in compliance with the manufactured home, multi-family, and tiny home installation standards established by the State Housing Board in Rules 2.21 through 2.24 of these rules.

- 1.32 “Permanent foundation” as defined in section 24-32-3302(26.5) C.R.S, is further defined to account for point loads of the structure to the ground, prevent lateral movement and overturning of the structure, and provide frost protection. Local government building departments are responsible for design review and approval of permanent foundations. For areas of the state without a local government building department, the Division of Housing will review and approve permanent foundations designed by a Colorado-licensed design professional for all factory-built structures, and for site-built hotels, motels, and multi-family structures.
- 1.33 “Plan” means a specific design for the construction of a structure submitted by the manufacturer or the building contractor to the Division of Housing or an authorized third-party agency for review and approval that typically includes a floor plan, elevation drawings, structural pages, electrical circuit layouts, recommended foundation drawings, mechanical drawings, plumbing isometrics, cross section drawings, an energy code compliance report, heat load calculations, and the engineering calculations.
- 1.34 “Quality control procedures” means procedures prepared by a manufacturer for each of its manufacturing facilities and approved by the Division of Housing or “third-party agency” (defined in Rule 1.46 below) describing the method that the manufacturer uses to assure structures produced by that manufacturer are in conformance with the applicable standards, codes, and approved plans.
- 1.35 “Red Tag Notice” means a physical identification posted visibly on a particular structure indicating that it is in violation of applicable state statutes, federal law, or these rules. A structure posted with this notice cannot be sold, offered for sale, nor have occupancy in Colorado.
- 1.36 “Regional model” means a factory-built structure, except a HUD-code home, designed to meet regional design criteria in Appendix A of these rules. Regional models may be installed in multiple locations across Colorado where the approved regional model plan meets or exceeds the regional design criteria adopted by the Division of Housing, without further plan review or approval.
- 1.37 “Regional model plan” means a set of construction plans designed to meet regional design criteria in Appendix A of these rules. Approved regional model plans may be used, without further plan review or approval, to manufacture factory-built structures to be installed in multiple locations across Colorado where the approved regional model plan meets or exceeds the regional design criteria adopted by the Division of Housing.
- 1.38 “Registered” is the status that is given by the Division of Housing that signifies that an installer, independent contractor, seller, building or general contractor, or manufacturer has met the minimum requirements for registration, and approved by the Division, through submission of an application and required documents set in these rules.

- 1.39 “Remote inspection” means a production inspection performed, where the inspector is in a location other than the location where the structure is being manufactured, using a computer having an internet or cellular connection to communicate with a manufacturer’s representative responsible for quality control. The manufacturer’s representative responsible for quality control shall utilize a smart device (cell phone, tablet, etc.). The inspection must be performed in “real time” with continuous live stream video from the manufacturing location, and two-way audio. Each inspection must be securely stored on the internet and retrievable by VIN, serial number, insignia number or other Division of Housing-approved identifier. Remote inspections may only be conducted by an authorized third-party agency.
- 1.40 “Residential fire suppression system contractor” means an individual or business entity that offers to undertake, represents itself as being able to undertake, or does undertake to sell, lay out, fabricate, install, modify, alter, repair, maintain, or perform maintenance inspections on a residential fire suppression system. Individuals or companies performing work on fire suppression systems only in IRC residential occupancies may hold Division of Housing-approved credentials or be registered as a fire suppression system contractor or residential fire suppression system contractor with the Colorado Division of Fire Prevention and Control.
- 1.41 “State Administrative Agency” or “SAA” means the Building Codes & Standards Section of the Colorado Department of Local Affairs’ Division of Housing which has been approved or conditionally approved by the federal government to carry out its state plan for enforcement of its standards pursuant to Rules 2.17 through 2.20 of these rules.
- 1.42 “Temperature sensitive equipment” means equipment or instrumentation whose performance or lifespan can change due to changes in the ambient temperature surrounding that equipment or instrumentation.
- 1.43 “Temporary foundation” as defined in section 24-32-3302(34), C.R.S., is further defined to clarify that local government building departments are responsible for design review and approval of temporary foundations. For areas of the state without a local government building department, the Division of Housing will review and approve temporary foundations designed by a Colorado-licensed design professional for all factory-built structures, and for site-built hotels, motels, and multi-family structures.
- 1.44 “Temporary structure” means a structure that is intended to be installed at a location for no longer than 180 calendar days.
- 1.45 “Temporary use” means a structure that is only intended to be occupied for short periods of time. This use may be for temporary or permanent structures.

- 1.46 “Third-party agency” means one of the following entities authorized by the Division of Housing:
- 1.46.1 “Firm” as used in the definition of an “independent contractor” pursuant to section 24-32-3302(15), C.R.S., to perform or enforce installation inspections, or
- 1.46.2 “State” or “firm” as used in the definition of a “quality assurance representative” pursuant to section 24-32-3302(30), C.R.S., to:
- (A) Inspect a manufacturer’s registered or certified facility by conducting a “production review” pursuant to section 24-32-3302(28), C.R.S., in order to determine its ability to follow a building “plan” approved by the Division of Housing and the construction standards and codes adopted by the State Housing Board, evaluating a manufacturer’s “quality control procedures,” and performing design evaluations;
 - (B) Inspect a factory-built structure or tiny home at seller lots or on-site as part of an oversight inspection of a registered factory, random audit inspection of a certified factory, or an on-site construction (OC) inspection to ensure compliance with construction standards and codes adopted by the State Housing Board;
 - (C) Certify a manufacturer’s factory-built structure or tiny home by affixing an insignia of approval issued by the Division of Housing deeming it to be designed and constructed in compliance with the requirements of all codes and standards enacted or adopted by the State Housing Board; or
 - (D) Review and approve construction plans, submitted by manufacturers directly to the Division of Housing (in this case, the Division could contract with a third-party agency), or submitted by a manufacturer directly to a third-party agency.
- 1.47 “Tiny house” is distinct from a “tiny home” as defined pursuant to section 24-32-3302(35), C.R.S., in that a “tiny house” as defined in Appendix BB of the 2024 International Residential Code shall be installed on a permanent foundation.
- 1.48 “Unit” means a box or boxes, or panelized structure that when assembled in-factory or on-site complete a structure or space within a structure that is not a component and is certified independently from other units or structures.
- 1.49 “Vehicle chassis” means the base frame of a single-family dwelling, designed and constructed for long-term occupancy that supports the home’s construction and transportation, and includes axles, wheels, Gross Vehicle Weight Rating (GVWR) and a Vehicle Identification Number (VIN).

- 1.50 “Wildfire risk” means the threat to life and property posed by the intrusion of wildland fire into human development, specifically where structures meet or intermingle with wildland fuels.

Rule 2. Codes and Standards

The State Housing Board hereby adopts and incorporates by reference the following nationally recognized codes, standards, guidelines, procedures, or rules in their entirety, except for the revisions, additions, deletions, or exceptions/exemptions specified below. The incorporated codes, standards, guidelines, procedures, or rules do not include later revisions. They are readily available for public inspection in written format during the regular business hours at the Division of Housing, Building Codes and Standards Section, 1570 Grant Street, Denver, CO 80203. Paper copies are available for a reasonable fee paid to the Division of Housing. Electronic copies are available from the agencies originally issuing them as noted below. In the case of a conflict between an adopted code, standard, procedure, or rules, the Division will review and provide written guidance.

For installation in Colorado, factory-built structures may be approved through one of two pathways.

- (1) The first pathway requires that factory-built structures are designed and constructed to meet regional design criteria detailed in these rules (see Appendix A).
- (2) The second, site-specific pathway allows approval based on designs that comply with codes adopted and amended within Rule 2, or other approved designs that are specific to a site. Site-specific designs may only be transferred to other locations with Division of Housing approval.

Codes and standards are organized as follows: construction codes are detailed in Rules 2.1 through 2.16. Rules 2.17 through 2.20 describe federal construction standards and procedures for HUD-code homes. Rules 2.21 through 2.24 detail state installation standards for manufactured homes and tiny homes.

Building Codes for Factory-Built Residential Structures and Tiny Homes; Factory-Built Nonresidential Structures; and Site-Built Hotels, Motels, and Multi-Family Structures in those areas of the State where no Standards Exist

Manufacturers are permitted to use the construction codes in effect prior to the adoption of any new code for a maximum of 180 calendar days after the amendment in rule takes effect. The Program Manager for the Building Codes and Standards Section, the Director of the Office of Regulatory Oversight, the Deputy Division Director, or the Division Director is authorized to grant, in writing, one extension, for a period not more than 180 calendar days.

- 2.1 The International Building Code (IBC), 2024 Edition, published by the International Code Council, Inc. (ICC) with the following amendments: (Note:

This is a safety code and is available through the ICC at:
<https://www.iccsafe.org.>)

2.1.1 Section 105.2 Work exempt from permit

Revise #1 within "Building" to:

2.1.1.1 Any structures that are one story in height and utilized for the storage of equipment or materials that:

- Do not exceed 120 sq. ft.
- Are not connected to a permanent utility (power, sewer, fuel-gas)
- Are not classified as an electrical hazardous area per Article 500 of the National Electrical Code (is a nonhazardous area), and
- Are not installed on a permanent foundation.

2.1.1.2 Listed Structures

A building that in its entirety operates as a listed product is automatically exempt as long as the manufacturer is able to demonstrate it is labeled as such.

2.1.1.3 Open Panel Construction:

A building component, assembly, or system constructed in the factory as open construction (see definition in Rule 1.30).

The above exemptions from approval through the Division of Housing do not grant any exemption from local jurisdiction requirements or State electrical or plumbing requirements. The above exemptions do not grant authorization for any work to be done in a manner that is in violation of the provisions of the adopted codes.

2.1.2 Section 901.2 Fire Protection systems

Add the following new section:

2.1.2.1 Section 901.2.1 Certified inspector required

An automatic fire sprinkler system shall be installed in buildings when required by the local jurisdiction where the structure will be set. Design approval, rough inspection, and final tests required by this Section shall be approved by a Division of Housing-approved quality assurance representative.

2.1.3 Section 907.2.11.2 (1) Smoke Alarms – Location

Revise “immediate vicinity” to read “within 15 feet”.

2.1.4 Section 907.2.11.6 Smoke Alarms – Power Source

Add to the end of the paragraph the following:

Smoke and/or carbon monoxide alarms shall not be installed on a circuit dedicated only for smoke and/or carbon monoxide alarms.

2.1.5 Section 915.2.1 Carbon monoxide alarms – Locations

Revise “immediate vicinity” to read “within 15 feet”.

2.1.6 Section 915.4.1 Carbon monoxide alarms – Power Source

Add to the end of the paragraph the following:

Smoke and/or carbon monoxide alarms shall not be installed on a circuit dedicated only for smoke and/or carbon monoxide alarms.

2.1.7 Section 1006.1 Numbers of Exit Access Doorways

Add 1006.1 Single exit in certain multifamily residential structures –

When permitted by the building code of the local jurisdiction where the building will be installed, or in a subject jurisdiction as defined in section 31-15-605(14)(e), C.R.S., a single exit may serve a building of no more than five stories for Group R-2 Occupancy as defined in section 31-15-605(14)(b), C.R.S., if the building meets the requirements of section 31-15-604, C.R.S., and the building code of the local jurisdiction where the building will be installed.

2.1.8 Chapter 11 Accessibility

Accessibility must comply with one of the two most recent versions of the IBC accessibility standards at the time of plan submittal or the most recent version, if adopted by the Division of Housing at the time of plan submission.

2.1.9 Chapter 13

Delete in its entirety.

2.1.10 Section 1503.6 Roof Snow Guards

Add:

If a snow guard system is provided by the manufacturer to the Division of Housing as part of its submitted design for the structure, then the snow guard is required to be installed per the manufacturer's instructions.

2.1.11 Section 1507.1.2 Ice barriers

Add the following sentence at the beginning:

Due to a history of ice forming along the eaves in Colorado, an ice barrier is required.

And add the following language at the end of the first sentence:

or not fewer than two layers of underlayment cemented together and to the roof.

2.1.12 Section 1601 General

Add to 1601.1 Scope:

The Regional Design Criteria table below details requirements for IBC structures. See Appendix A of these Administrative Rules for additional information.

2.1.13 Section 1608.2 Ground snow loads

Revise to read as follows:

Ground snow loads may be determined by using approved American Society for Civil Engineers (ASCE) 7-22: Minimum Design Loads and Associated Criteria for Buildings and Other Structures standards, as referenced in the IBC and IRC, for the specific site location where the structure will be installed, or use the local site data that is adopted and maintained by the Division of Housing that is based on local requirements that are less stringent than the ASCE 7-22 standards. In local jurisdictions that require higher snow load requirements than the site-specific ASCE 7-22 standards, the local jurisdiction shall show evidence of the site-specific case study prior to the Division of Housing approving an increased snow load designation for that jurisdiction or specific site and adopted as local site data maintained by the Division. For site-specific structures, roof Snow Load (Pf) shall not be less than 30 PSF after roof snow load has been calculated from the known or designed Ultimate Ground Snow load value. The allowable increase of snow duration shall not be used when the snow load is above 65 PSF.

Once the ground snow load is determined using the approved methods above, the structure may be designed using one of the prescriptive regions in the table in Appendix A of these Administrative Rules or a

structure may be designed for a site-specific location. Site-specific designs may only be transferred to other locations with Division of Housing approval. Regional models may be installed in multiple locations across Colorado where the approved regional model plan meets or exceeds the regional design criteria adopted by the Division of Housing.

2.1.14 Section 1609.3.1 Wind speed conversion

Add this new section with the following language:

The 3 second gust basic wind speed shall be in accordance with the local jurisdiction requirements. The Exposure category shall be a minimum of C. Site-specific structures must be designed to wind load speeds using the ASCE standards.

The Exposure category shall be C, unless otherwise justified.

2.1.15 Section 2111.1 and 2111.14.1 Fireplaces

Add this new section with the following language:

Every new fireplace must comply with one of the following:

1. Listed and labeled fireplace and chimney systems composed of factory-made components, and assembled in the field in accordance with the manufacturer's instructions and the conditions of the listing, and
2. Approved gas logs.

- 2.2 The International Residential Code (IRC), 2024 Edition, published by the International Code Council, Inc. (ICC) with the following amendments: (Note: This is a safety code and is available through the ICC at: <https://www.iccsafe.org>.)

2.2.1 Section 105.2 Work exempt from permit

Revise #1 within "Building to:

- 2.2.1.1 Any structures that are one story in height and utilized for the storage of equipment or materials that:
- Do not exceed 200 sq. ft.,
 - Are not connected to a permanent utility (power, sewer, fuel-gas)

- Are not classified as an electrical hazardous area per Article 500 of the National Electrical Code (is a nonhazardous area), and
- Are not installed on a permanent foundation.

2.2.1.2 Listed Structures

A building that in its entirety operates as a listed product is automatically exempt as long as the manufacturer is able to demonstrate it is labeled as such.

2.2.1.3 Open Panel Construction

A building component, assembly, or system constructed in the factory as open construction (see definition in Rule 1.30).

The above exemptions from approval through the Division of Housing do not grant any exemption from local jurisdiction requirements or state electrical or plumbing requirements. The above exemptions do not grant authorization for any work to be done in a manner that is in violation of the provisions of the adopted codes.

2.2.2 Table R301.2 (1)

Revise as follows:

The Regional Design Criteria table below details requirements for IRC structures. See Appendix A of these Administrative Rules for additional information.

2.2.2.1 Please refer to Appendix A for all design criteria applicable to IRC regional models.

2.2.2.2 For IRC only structures, the following items apply in conjunction with the Regional Design Criteria Table in Appendix A.

Colorado Regional Design Criteria	
Design Criteria Minimums for All Regions ^A	
Minimum	Requirement for IRC Structures Only
Accessory Dwelling Unit (ADU) Fire Separation	IRC Section R302.1 ^B

Thermal	Climate Zone 7 ^C
Fire Suppression	If required by local ^D

^A The table represents minimum design criteria that a structure must meet when designing regional structures.

^B May be exempt if the local authority having jurisdiction does not require fire separation for ADUs.

^C Residential structures built to the IRC may be exempt from climate zone 7 thermal envelope requirements if the structure will be installed in a jurisdiction in climate zone 4.

^D Fire suppression is required if required by the local authority having jurisdiction. A National Fire Protection Association (NFPA) 13D fire suppression system is required for all IRC residential structures.

2.2.3 Table R301.5 – Live Loads

Add footnote (j) to Decks, Porches, Exterior balconies, Fire escapes to read as follows:

(j) When the Allowable Stress Design (ASD) flat roof snow load is above 40 PSF, decks, external balconies, fire escapes, or other walking surfaces must be designed to consider the maximum flat roof snow load or the design live load.

2.2.4 Section R319.1 Emergency escape and rescue opening required

Add to the first sentence:

...,Cape Cod style attics that qualify as a story, and every...

2.2.5 Section 318.7.13 Ships ladders

Add the following sentence to the end of the Exception:

The device must remain fixed in position when used in these areas.

2.2.6 Section R313 Automatic Fire Sprinkler Systems

Delete this section and replace it with the following:

An automatic fire sprinkler system shall be installed in one- and two-family dwellings and townhouses when required by the local jurisdiction where the structure will be set. Design approval, rough inspection, and final tests

required by this Section shall be approved by a Division-approved quality assurance representative.

2.2.7 Section 310.3 (2) Smoke Alarms – Location

Revise “immediate vicinity” to read “within 15 feet”.

2.2.8 Section 310.6 Smoke Alarms – Power Source

Add to the end of the paragraph the following:

Smoke and/or carbon monoxide alarms shall not be installed on a circuit dedicated only for smoke and/or carbon monoxide alarms.

2.2.9 Section 311.3 Carbon monoxide alarms – Locations

Revise “immediate vicinity” to read “within 15 feet”.

2.2.10 Section 311.6 Carbon monoxide alarms – Power Source

Add to the end of the paragraph the following:

Smoke and/or carbon monoxide alarms shall not be installed on a circuit dedicated only for smoke and/or carbon monoxide alarms.

2.2.11 Section 903.5 Roof Snow Guards

Add:

If a snow guard system is provided by the manufacturer to the Division of Housing as part of its submitted design for the structure, then the snow guard is required to be installed per the manufacturer's instructions.

2.2.12 Section R802.10 Wood trusses

Add the following new section:

Section R802.10.5 Marking

Each truss shall be legibly branded, marked, or shall have other permanent labeling of the truss drawing's designated identification number on the large face of the top chord and within two (2) feet of the peak of the truss.

2.2.13 Section R905.1.2 Ice barriers

Revise to read as follows:

Due to a history of ice forming along eaves in Colorado, an ice barrier is required. The ice barrier shall consist of a self-adhering polymer-modified bitumen sheet and shall extend from the eave's edge to a point at least 24" inside the exterior wall line of the building or not fewer than two layers of underlayment cemented together and to the roof.

2.2.14 Section R1004.4, G2406.2 exceptions 3 and 4, G2425.8 #7, G2445

Delete all and replace with the following:

Unvented fuel fired room heaters and unvented fuel fired fireplaces are prohibited.

2.2.15 Add the following new sections:

Section R1001.1 and R1004.1 – Fireplaces

Every new fireplace must comply with one of the following:

1. Listed and labeled fireplace and chimney systems composed of factory-made components, and assembled in the field in accordance with the manufacturer's instructions and the conditions of the listing, and
2. Approved gas logs.

2.2.16 Section P2503.5.1 Rough plumbing

Delete the words "other than plastic" in the sentence for water and air testing.

2.2.17 Chapter 11 Energy Efficiency

Delete in its entirety.

2.2.18 Section M2001.1 Installation and G2452.2 Installation

Add the following sentence:

All rooms or spaces containing boilers shall be provided with a floor drain and trap primer.

2.2.19 Section M2005.1 Water Heaters

Add the following sentence:

All rooms or spaces containing water heaters shall be provided with a floor drain and trap primer.

2.2.20 Section G2417.4.1 Test pressure

Revise to read as follows:

The test pressure to be used shall not be less than 1 ½ times the proposed maximum working pressure, but not less than 10 psig (69 kPa gauge) for a period of not less than 15 minutes. Where the test pressure exceeds 125 psig (862 kPa gauge), the test pressure shall not exceed a value that produces a hoop stress in the piping greater than 50 percent of the specified minimum yield strength of the pipe. The test pressure for valves and connections to appliances shall not exceed 0.5 psig (3kPa).

2.2.21 Section G2425.8 Appliances not required to be vented

Delete number seven (7).

2.2.22 Section G2427.4.1 Plastic piping

Add new sentence at the end of the section to read:

Cellular core PVC piping is prohibited from ventilating any gas-fired appliance.

2.2.23 Electrical Sections

Delete Chapters 34 through 43.

2.2.24 Appendix A – Sizing and Capacities of Gas Piping

Adopted.

2.2.25 Appendix P – Sizing of Water Piping System

Adopted.

2.2.26 Appendix BB – Tiny Houses and Tiny Homes

1. Amend Appendix BB Tiny Houses as follows:

- a. BB101.1 Scope: Change to read: This appendix shall be applicable to tiny houses, and “tiny homes” as defined by section 24-32-3302(35), C.R.S., used as single dwelling units. Tiny houses, and “tiny homes” as defined by section 24-32-3302(35), C.R.S., shall comply with this code except as otherwise stated in this appendix. Insert “...and tiny homes” after each reference to “tiny houses” in all sections of this appendix.

- b. BB106.2 Alternative Compliance: Add condition 7: Tiny homes may use R30 in ceiling insulation to meet the intent of R402.1.2 and R402.2.2.
- c. Add: BB107: Bathroom Lavatory: For tiny homes, if a bathroom lavatory cannot be added due to size constraints, then the kitchen sink can be substituted to meet the lavatory requirement.
- d. Add: BB108: Construction on a Built-for-Purpose Trailer. The tiny home will be built on a built-for-purpose trailer. Trailers that have structure modifications prior to the start of the tiny home build must provide engineered stamped drawings and the documentation to be roadworthy on Colorado roads. (Structural modifications may change the trailer classification to a kit trailer or homemade trailer and a new VIN/GVWR and physical inspection by the Colorado Department of Transportation or Colorado State Highway Patrol, or other approved agencies may be required.)
- e. Add: BB109: Tiny Home on a Temporary Foundation. A tiny home on wheels which is installed on a temporary foundation may utilize connections to an electrical pedestal or plumbing connections that allow for movement from one location to another.

2.3 The International Mechanical Code (IMC), 2024 Edition, published by the International Code Council, Inc. (ICC) with the following amendments: (Note: This is a safety code and is available through the ICC at: <https://www.iccsafe.org>.)

2.3.1 Section 303.3.1 LPG appliance

Add the following new section:

LPG appliances shall not be installed in a pit, basement, or crawl space where unburned fuel may accumulate unless an approved sensing device is installed in conjunction with an automatic shutoff valve located where the gas enters the structure only for retrofitting of existing structures or as required by the local jurisdiction.

2.3.2 Section 903.1 General

Add the following additional sentence:

Every new installation of a solid fuel-burning, vented decorative appliance or room heater shall meet the most stringent emission standards for wood stoves established under State statute and/or regulations promulgated by

the State Air Quality Control Commission as of the time of installation of the appliance or room heater. (Effective January 1, 1991 – CC90-617).

2.3.3 Section 903.3 Unvented gas log heaters

Delete this section in its entirety.

2.3.4 Section 1109.2.5 Refrigerant pipe shafts

Delete from number 2: “using Group A1 refrigerant.”

- 2.4 The International Plumbing Code (IPC), 2024 Edition, published by the International Code Council, Inc. (ICC). The edition adopted by the Colorado State Plumbing Board will be the state-adopted edition. (Note: This code is a safety code and is available through the ICC at: <https://www.iccsafe.org>.)

A transition period of 180 calendar days after the effective date applies. The Program Manager for the Building Codes and Standards Section is authorized to grant, in writing, one extension, for a period not more than 180 calendar days.

Any conflicts that may arise between these amendments and a future State-adopted edition of the IPC shall be resolved by applying the specific amended provisions of the 2024 edition. The following amendment is made to the IPC for use with all factory-built units:

2.4.1 Appendix Chapter E – Sizing of water piping systems

2.4.1.1 Section 312.3

Delete the words “Plastic Piping shall not be tested by using air”.

- 2.5 The National Electrical Code (NEC), published by the National Fire Protection Association, Inc. (NFPA), and the Edition as adopted by the Colorado State Electrical Board at the time of plan submittal with the following amendments: (Note: This is a safety code and is available through the NFPA at: <https://www.nfpa.org>.)

A transition period of 180 calendar days after the effective date applies. The Program Manager for the Building Codes and Standards Section is authorized to grant, in writing, one extension, for a period not more than 180 calendar days.

Any conflicts that may arise between these amendments and a future State-adopted edition of the NEC shall be resolved by applying the specific amended provisions of the 2023 edition. The following amendments are made to the NEC for use with all factory-built structures:

2.5.1 Article 210.52(A)(2) Wall Space.

Add the following exception to the end: Space directly below the island and peninsular countertop and work surfaces are not considered wall space.

2.5.2 Article 210.52(C)(2) Island and Peninsular Countertops and Work Surfaces.

Add the following sentence to the end: "Receptacle outlets, other than those installed per 210.52(C)(3) shall not be installed in the space directly below the island or peninsular countertop or work surface.

2.5.3 Article 545 Manufactured Buildings

Add the following new section:

2.5.3.1 Section 545.14 Testing of Factory-built Structures with a Permanent Chassis

(A) Continuity and Operational Tests and Polarity Checks. Each manufactured building shall be subjected to:

- (1) An electrical continuity test to ensure that all exposed electrically conductive parts are properly bonded;
- (2) An electrical operational test to demonstrate that all equipment, except water heaters and electric furnaces, is connected and in working order; and
- (3) Electrical polarity checks of permanently wired equipment and receptacle outlets to determine that connections have been properly made.

These tests shall be performed after branch circuits are complete and after wiring devices are installed and wiring properly terminated.

2.5.4 Article 334.23 Cables Run Across the Top of Floor Joists/Rafters

Add the following new sentence at the end:

Substantial guard strips or other protection shall be provided to protect wiring within three (3) feet of the marriage line where the attic is exposed and the roof is completed on-site, such as a hinged roof.

2.5.5 Article 210.8(F) Outdoor Outlets

Add the following to the existing exception:

...than those covered in 210.8(C), and outlets designated for outdoor mechanical cooling equipment.

This exception is limited to outdoor mechanical cooling equipment shipped loose by the manufacturer with the factory-built structure to be completed on-site. This exemption does not apply if the outdoor mechanical cooling equipment is provided by any other party. If it is provided by a party that is not the manufacturer of the factory-built structure, then the State Electrical Board's requirement applies.

- 2.6 The International Fuel Gas Code (IFGC), 2024 Edition, published by the International Code Council, Inc. (ICC) with the following amendments: (Note: This is a safety code and is available through the ICC at: <https://www.iccsafe.org>.)

2.6.1 Section 303.3 Prohibited locations

Add the following:

LPG appliances shall not be installed in a pit, basement, or crawl space where unburned fuel may accumulate unless an approved sensing device is installed in conjunction with an automatic shutoff valve located where the gas enters the structure only for retrofitting of existing structures or as required by the local jurisdiction.

2.6.2 Section 303.3, 501.8 #8, Section 621

Delete all and replace with the following:

Unvented fuel fired room heaters and unvented fuel fired fireplaces are prohibited.

2.6.3 Section 406.4.1 Test pressure

Revise to read as follows:

The test pressure to be used shall not be less than 1½ times the proposed maximum working pressure, but not less than 10 psig (69 kPa gauge), irrespective of design pressure, for a period of not less than 15 minutes. Where the test pressure exceeds 125 psig (862 kPa gauge), the test pressure shall not exceed a value that produces a hoop stress in the piping greater than 50 percent of the specified minimum yield strength of the pipe. The test pressure for valves and connections to appliances shall not exceed 0.5 psig (3kPa).

2.6.4 Section 501.8 Unvented appliances

Delete number seven (7).

2.6.5 Section 503.4.1 Plastic piping

Add new sentence at the end of the section to read:

Cellular core PVC piping is prohibited from ventilating any gas-fired appliance.

- 2.7 The International Energy Conservation Code (IECC), 2024 Edition, published by the International Code Council, Inc. (ICC) with the following amendment: (Note: This code is available through the ICC at: <https://www.iccsafe.org>.)

2.7.1 Section R402.4.1.2

Add the following requirement:

All air barrier elements shall be installed as detailed in Table 402.4.1.1 and are inspected and verified with a checklist incorporated into the Quality Assurance Inspection Checklist and part of the “finished home” file for the building/dwelling. All elements of the air barrier shall be listed and installed per the manufacturer's installation instructions. A completed air barrier checklist shall be kept on file with the Division of Housing and the manufacturer's quality assurance program.

- 2.8 The International Fire Code (IFC), 2024 Edition, published by the International Code Council, Inc. (ICC) with the following amendments: (Note: This is a safety code and is available through the ICC at: <https://www.iccsafe.org>.) This adoption applies only to the construction of factory-built structures.

- 2.8.1 IFC appendices are not applicable unless adopted by the local fire protection district where the factory-built structure will be installed.

- 2.8.2 Regulation of IFC Chapters 5 and 9 requirements will be delegated to the local fire protection district where the factory-built structure will be installed. Fire suppression systems will be installed where the local jurisdiction requires fire suppression.

Exception: Where the proposed site location does not have an adopted Fire Code, the site water supply, fire hydrant performance, and spacing criteria to be provided in accordance with an approved method per IFC Section 507.3 (e.g., IFC Appendix B, C, or NFPA 1142).

2.8.3 Add IFC Section 106.1.1

Preparation of construction documents required by IFC Section 105.6.1, 105.6.2, 105.6.7, 105.6.8, 105.6.20, 105.6.24 are to be prepared by a professional engineer registered in the State of Colorado in an applicable discipline and/or by a minimum NICET level III designer in the applicable field of expertise.

- 2.9 ICC/MBI 1200 – 2021 Standard for Off-site Construction: Planning, Design, Fabrication and Assembly. This standard is available through the ICC at: <https://www.iccsafe.org>.
- 2.10 ICC/MBI 1205 – 2021 Standard for Off-site Construction: Inspection and Regulatory Compliance. This standard is available through the ICC at: <https://www.iccsafe.org>.
- 2.11 ICC/MBI 1210 – 2023 Standard for Mechanical, Electrical, Plumbing Systems, Energy Efficiency and Water Conservation in Off-site Construction. This standard is available through the ICC at: <https://www.iccsafe.org>.
- 2.12 ICC 2019 G5 Guideline for the Safe Use of ISO Containers. This standard is available through the ICC at: <https://www.iccsafe.org>.
- 2.13 ICC 2023 G6 Guideline on Advanced Panelization for Buildings. This standard is available through the ICC at: <https://www.iccsafe.org>.
- 2.14 2023 Colorado Model Electric Ready and Solar Ready Code. This code is available through the Colorado Energy Office at:
https://drive.google.com/drive/folders/1djvz5to3UVDPC_g7Z0nwlGtBtQwBinmuz.
- 2.15 2025 Colorado Wildfire Resiliency State Code (CWRC) and Map established through 8 CCR 1507-39. This adoption applies only to the construction of factory-built structures.
- 2.15.1 2025 Colorado Wildfire Resiliency Code Map. The CWRC Board also directed the creation of a Fire Intensity Classification later for the 2025 CWRC Map. More information is available at:
<https://dfpc.colorado.gov/colorado-wildfire-resiliency-code>.
- 2.15.2 CWRC Board-approved local amendments to the CWRC Code or Map or submitted to the Division of Housing as an alternate construction standard are applicable to construction standards.
- 2.15.3 Local jurisdictions may seek Division approval for alternate construction under Rule 2.16 for compliance with local wildfire mitigation.
- 2.15.4 When the Colorado Wildfire Resiliency State Code and Map show two different fire intensities for a site where a factory-built structure will be installed, the structure must be designed and built to the more stringent requirements.
- 2.15.5 **Section 403.2.2 Roof Valley Flashing**
- Revise to:
- When installed, valley flashing...

- 2.16 Upon written request, the Division of Housing will consider modifications to the standards or alternate materials and methods of construction. The Division will require that sufficient evidence or proof be submitted to support and substantiate the modification or alternate request.
- 2.16.1 The Division of Housing may approve any such modification or alternate, provided the Division finds that the proposed modification or alternate conforms with the intent and purpose of the standards and is equivalent in suitability, strength, effectiveness, durability, safety, and sanitation.
- 2.16.2 The approval of any modification and/or alternate by the Division of Housing will be made in writing and is required prior to commencing the work in question.
- 2.16.3 Emergency Response Units: In the event that a local jurisdiction has declared a state of emergency, and met the written request and evidence or proof submitted to support and substantiate the request as stated in Rule 2.16, and provided the Division of Housing makes the findings required by Rule 2.16.1, the Division may for a period of 180 calendar days allow a modification to the standards, or alternate materials and methods of construction. Additional 180-calendar day extensions may be requested in writing by the local jurisdiction to the Division. Requests from the local jurisdiction should include a copy of the approved local jurisdiction codes and explanation of the requested changes and any site-specific information. Requests will not be accepted that are more stringent than the current adopted codes. These structures will receive an Emergency Response Unit insignia from the Division of Housing.
- 2.16.3.1 An emergency response unit may only be moved to a different jurisdiction if the receiving jurisdiction accepts the structure.
- 2.16.3.2 Any modifications to change the use of an emergency response unit must be approved by the Division of Housing, unless modified on-site and the local jurisdiction accepts responsibility for all inspections. Local jurisdictions may take responsibility for emergency response units permanently located in their jurisdiction.
- 2.16.3.3 Emergency response units permanently installed as one- or multi-family dwellings must comply with the Manufactured Home Installation Program requirements detailed in Rule 10.

Construction Standards and Procedures for U.S. Housing and Urban Development (HUD) Homes

These standards and procedures are available through HUD at: <https://www.hud.gov>.

The State Housing Board adopts the following requirements for manufactured homes constructed to the “National Manufacturing Housing Construction and Safety Standards Act of 1974”, 42 U.S.C. sec. 5401 et seq. (manufactured from June 15, 1976 to present):

- 2.17 Compliance with Title 24: Housing and Urban Development; Subtitle B—Regulations Relating to Housing and Urban Development (Continued); Chapter II—Office of Assistant Secretary for Housing—Federal Housing Commissioner, Department of Housing and Urban Development; Part 3280—Manufactured Home Construction and Safety Standards, of Title 24.
- 2.18 Compliance with Part 3282—Manufactured Home Procedural and Enforcement Regulations of the same title, subtitle, and chapter in Rule 2.17 as applied and enforced as the state administrative agency for the federal government.
- 2.19 Compliance with Part 3286—Manufactured Home Installation Program of the same title, subtitle, and chapter in Rule 2.17, which is inspected and enforced through application of the Division of Housing’s adopted Manufactured Housing Installation Codes.
- 2.20 Compliance with Part 3288—Manufactured Home Dispute Resolution Program of the same title, subtitle, and chapter in Rule 2.17 as applied and enforced as the state administrative agency for the federal government.

Manufactured Home and Tiny Home Installation Standards

These standards and guidelines are available through the Division of Housing in the form of the “Manufactured Home Installation Manual” located at:
<https://drive.google.com/file/d/11pJ15Q6xNN8dy5R1c6nHYtHS-CuGbrOk/view>.

- 2.21 Factory-built residential structures (modular) must be installed on a permanent foundation approved through the local jurisdiction. In areas where no building codes have been adopted, the foundation must be designed and approved by a state of Colorado-licensed engineer unless plans are approved by the Division of Housing and in compliance with its adopted International Residential Code (IRC) foundation prescriptive requirements. The current written installation instructions provided by the manufacturer of the home must be followed.
- 2.22 An installation of a HUD-code home in this state must be performed in strict accordance with the applicable manufacturer's installation instructions. The value of the allowable bearing capacity of the soil the home will rest on must be recorded by the installer on the Installation Authorization form or other Division-approved form and justification for higher values also provided if it is determined to be other than 1,500 psf.

- 2.23 An installation of a tiny home in this state must be performed in strict accordance with the applicable manufacturer's installation instructions. Tiny homes may be installed on a temporary or permanent foundation.
- 2.24 Older manufactured homes and tiny homes that do not include an installation manual, to include pre-1976 mobile homes and HUD-code homes, must be installed in accordance with one of the following alternate standards adopted by the Division of Housing and State Housing Board:
 - 2.24.1 Structural attachment requirements approved by a State of Colorado actively licensed engineer.
 - 2.24.2 Current version of the International Residential Code (IRC) as adopted by the State Housing Board.
 - 2.24.3 HUD-code homes may be installed per the most current version of the National Fire Protection Association (NFPA) 225, Model Manufactured Home Installation Standard.

Rule 3. Fees

The State Housing Board establishes the following schedule of fees, which are not subject to refund, are due in advance, and must accompany the appropriate application, except for certain inspection fees:

3.1 Annual registration or authorization fees:

- 3.1.1 Plant/Manufacturer: \$792.00
- 3.1.2 Seller: \$200.00
- 3.1.3 Installer (Individual or business): \$250.00

3.1.3.1 A business entity will pay an initial annual registration fee of \$250. The annual renewal fee shall be \$250. Additional qualifying individuals may be added to the business entity registration during the annual registration cycle for a processing fee of \$100. Adding qualified individuals will not change the renewal cycle of the business entity installer registration.

- 3.1.4 Independent Inspector (Installations): \$461.00
- 3.1.5 Third-Party Agency \$500.00
- 3.1.6 Building/General Contractor Registration \$200.00
- 3.1.7 Late re-registration or authorization fee (over 30 days) \$128.00

- 3.2 Plan Screening Fee \$200.00 per regional

	model or site-specific
3.2.1 Administrative Processing: Plan Filing Fee	50.00
3.3 Plan checking fees:	
3.3.1 Finished space:	\$0.33 per sq. ft. (\$100 min.)
3.3.2 Unfinished space (attics, lofts, garages, etc.):	\$0.14 per sq. ft.
3.4 Supplemental plan check fee (renewal, etc.):	\$0.14 per sq. ft. (\$100 min.)
3.4.1 2nd Resubmittal Plan Check Fee	\$130.00
3.4.2 Revision Fee or Regional Model Plan Options	\$77 per hour (\$100 min.)
3.5 Third-party oversight plan check fee (includes audits):	\$0.20 per sq. ft. (\$150 min.)
3.6 Insignia fees:	
3.6.1 Primary Insignia:	\$165.00
3.6.2 Additional Floor Tag:	\$165.00
3.6.3 Inspection-only Tag:	\$165.00
3.6.4 Component-only Insignia:	\$165.00
3.6.5 Modification Insignia:	\$165.00
3.6.6 Installation Insignia (free for participating jurisdictions):	\$80.00
3.7 Inspection fees:	
3.7.1 In-Plant/Factory inspection fee:	\$449.00 per inspection
3.7.2 Oversight inspection fee, including re-inspections:	\$357.00 per inspection/address
(A)	An additional multi-box fee is required if the structure has more than 3 boxes – add \$33.00 per box.

- (B) Multi-family IBC Inspection Fee \$400 per dwelling unit plus an additional multi-box fee is required if the structure has more than 3 boxes – add \$40 per box. An all-day (up to 8 hours) fee may be determined if necessary. Multi-day fees will require extra fees for lodging/food.

3.7.3 Special inspection fee:

- (A) In-state: \$77.00 per hour, per inspection, plus trip expenses of travel, food, lodging, parking, car rental, etc., as allowed in state fiscal rules for per diem and travel.
- (B) Out-of-state units manufactured in Colorado: \$448.00 per inspection/unit

3.7.4 Modification inspection fee: \$225.00

3.7.5 Installation inspection fee (residential):

- (A) Final or Foundation (Rough or Final): \$265.00 plus an additional multi-box fee is required if the building has more than 3 boxes – add \$33 per box.
- (B) Re-inspection fee: \$265.00
- (C) Multi-family Installation Fee \$357.00 per building plus an additional multi-box fee is required if the building has more than 3 boxes – add \$33 per box. An all-

day (up to 8 hours) fee
may be determined if
necessary. Multi-day fees
will require extra fees for
lodging/food.

(D)	Installation Authorization Fee	\$26.00
3.7.6	Complaint Inspections (if a correction notice is upheld)	\$250.00
3.7.7	Non-Compliance/Prohibited Sale/Red Tag fee:	\$330.00
3.7.8	Cancelled Inspection fee – same day	Full fee
3.8	Audit Fees	
3.8.1	Manufacturers – plans	\$0.32 per sq. ft. (\$150 min.)
3.8.2	Manufacturers – documentation	\$125.00
3.8.3	Third-Party Agencies – inspections and documentation	\$125.00
3.8.4	Sellers – documentation	\$125.00
3.8.5	Installers – documentation	\$125.00
3.9	Certificate of Occupancy fee (only applies to hotels, motels, and multi-family structures in those areas of the state where no standards exist):	\$165.00
3.10	Waiver of fees:	
3.10.1	Pursuant to section 24-32-3315(7)(a), the Division of Housing does not charge for certification of installers.	
3.10.2	The Division of Housing waives the fee for certification of an independent inspector.	
3.10.3	The Division of Housing does not charge for installer or inspector exams.	
3.10.4	The Division of Housing waives the insignia fee for local jurisdictions that perform installation inspections as authorized participating jurisdictions.	

3.11 As-built structures

- 3.11.1 As-built structures will be charged double the respective fee for each unit if found to not have gone through the proper approved procedures here within these rules for plan approval, manufacturer registration, inspections, or reporting.

Rule 4. Factory-Built Residential Structures (Modular, Tiny Homes, and Multi-Family) and Non-Residential Structures (Commercial) Requirements

- 4.1 Every “factory-built structure” as defined in section 24-32-3302(11), C.R.S., that is manufactured, sold, offered for sale, or occupied in Colorado must display an insignia issued by the Division of Housing certifying that the structure is constructed in compliance with the codes adopted by the State Housing Board. This does not apply to factory-built structures manufactured or sold for transportation to and installation in another state. However, if the structure were to return to Colorado for use, then it would require an insignia issued by the Division of Housing. To assist with the certification process, pursuant to section 24-32-3303(1)(a), C.R.S., a “manufacturer” as defined in section 24-32-3302(23), C.R.S., is required to be “registered” (based on qualifications) or “certified” (based on performance) with the Division of Housing.
- 4.1.1 Registration or certification is for a specific manufacturing facility location and is not transferable to any other location including those of the same manufacturer.
- 4.1.2 A registered or certified manufacturer is required to inform the Division of Housing of a change in ownership, address, or location within ten (10) business days of such change.
- 4.1.3 Tiny homes built for personal use, not to be sold within one (1) year, may be inspected and certified for construction and installation. The tiny home must be built to the Division of Housing-approved Administrative Rules and inspected at all stages of construction by the Division or a Division-authorized representative. The approval is only valid for that specific jurisdiction. If the tiny home is relocated outside of that jurisdiction, then it is subject to the local codes and ordinances of the jurisdiction it is relocated to.
- 4.1.3.1 Tiny homes built for personal use are limited to one structure per household. More than one structure will be considered manufacturing and requires registration as a manufacturer per this Rule 4.
- 4.1.4 Tiny homes built for personal use and only intended for use within the jurisdiction they are built in, are regulated by the local building department, follows the local codes and ordinances, and will not be certified by the Division as a State-approved structure.

- 4.2 Homeowners may build their own residential modular structure for personal use, but not for the purpose of selling it. The structure must be built to the Division of Housing-approved Administrative Rules and inspected at all stages of construction by the Division or a Division-authorized representative.
 - 4.2.1 Modular structures built for personal use are limited to one structure per household. More than one structure will be considered manufacturing and requires registration as a manufacturer per this Rule 4.
- 4.3 Registered/certified manufacturers are required to have that facility's production approved by the Division of Housing or an authorized third-party agency through an initial review of its quality control (QC) program and the quality control personnel that ensure construction code compliance. The Division of Housing must be notified of any changes to the QC program or personnel.
- 4.4 The manufacturer's QC department must perform "no cover" inspections for all phases of construction on all structures, components, and panels, and witness all required tests, regardless of whether the facility is registered or certified.
- 4.5 Upon the manufacturer's receipt of the approved plans and manual, an authorized third-party agency may proceed with QA, rough, and final inspections with registered manufacturers, or if the manufacturer is certified, to include factory oversight inspections.
- 4.6 Manufacturers who collect deposits for the direct sale of one- or two-family dwellings directly to consumers must register as a seller with the Division of Housing and follow all statutory and Rule 9.2 requirements.
 - 4.6.1 The exception is if the purchaser is a developer who in turn plans to resell the home to the end-user; the developer in that scenario is required to be a registered seller with the Division of Housing.
 - 4.6.2 Manufacturers who receive down payments or deposits from registered sellers must provide the following protections for down payments in excess of the cost of materials, construction, design, and administration of the specific home ordered by the consumer.
 - (1) Provide to the Division of Housing a letter of credit or surety bond in the amount of \$100,000 which the Division may call upon after an enforcement action for cancellation or failure to deliver a structure when the down payment is not returned.
 - (2) Make available to the Division of Housing upon request an accounting of deposits received, and amounts spent for materials, construction, design and administration for each structure from time of deposit received to delivery of the structure if the Division requests this information as part of an audit to verify compliance.

- 4.7 In order to provide efficiency, manufacturers building multi-family or commercial structures as a part of a development project of five (5) or more buildings must contact the Division of Housing and provide a project plan that includes: project schedule, production schedule, on-site construction items, and installation plan and schedule. It is recommended to contact the Division of Housing early in the planning process, even before all the required documents are available. The Division will evaluate the materials provided, meet with the respective parties, and determine a total estimated fee schedule. Overnight stays by inspectors may require additional expenses. Following the installation, it is recommended that a follow-up meeting be conducted with all applicable parties to check the status of the project plan.
- 4.8 Manufacturers using the services of a building contractor for site preparation or on-site construction activities are responsible for ensuring that the building contractor who supervises site preparation or on-site construction work holds a current license required by the local jurisdiction where the work is being performed or is registered with the Division of Housing, per Rule 6.
- 4.8.1 If using a building contractor for site preparation work or on-site construction related to the completion of the structure, the supervising building contractor must complete the Division of Housing's contractor education regardless of whether they are licensed by a local jurisdiction or registered with the Division.

Manufacturer Registration

- 4.9 Once issued by the Division of Housing's Building Codes & Standards Section, a registration is active for one (1) year and must be successfully renewed in order to continue manufacturing structures in the state of Colorado, or shipping structures to Colorado. Notifications are only sent as a courtesy, for all registration types, when the registration period is going to expire at 60 days and 30 days prior to the expiration date, and when it expires.
- 4.10 At the time of registration, all manufacturers are required to have Division of Housing approval, in writing, of the authorized third-party agency or agencies that will conduct plan review and approval, or production inspections and certification of Colorado structures on behalf of the Division. A manufacturer is also required to request approval of the Division of Housing thirty (30) days prior to any subsequent change of a third-party agency.
- 4.11 A registration will remain active if a complete application is submitted to the Division of Housing by the registration expiration date.

Certified Manufacturer Status

- 4.12 A manufacturer must maintain an active Colorado registration for each manufacturing facility requesting certified status.

- 4.12.1 Out-of-state, registered manufacturers must utilize an authorized third-party agency to submit a recommendation for certified manufacturer status to the Division of Housing.
- 4.12.2 In-state, registered manufacturers may utilize an authorized third-party agency to submit a certified manufacturer recommendation or request certified manufacturer status from the Division of Housing.
- 4.12.3 Each manufacturing location will require a separate, certified manufacturer recommendation.
- 4.12.4 The Division of Housing and authorized third-party agencies will utilize the following criteria for approval of registered manufacturers requesting certified manufacturer status.
 - (A) Verify that accountable personnel are capable of identifying and addressing non-conforming items.
 - (B) Verify that training has been achieved for all accountable personnel.
 - (C) Verify an established and functioning quality control program. See Rules 1.34 (QC procedures) and 4.3 (QC program).
 - (D) Verify that the last three buildings delivered to Colorado have completed production in compliance with (A), (B), and (C) above.
- 4.12.5 Recommendations received from an authorized third-party agency will be reviewed, and if deemed compliant, approved by the Division of Housing and a letter will be sent to the certified manufacturer and the third-party agency doing production inspections.
- 4.13 All certified manufacturers are registered manufacturers and must follow all registered manufacturer requirements unless specifically exempted or changed in these rules.
- 4.14 Certified manufacturer status for a specific facility is considered ongoing unless the manufacturer fails to perform as described in Rule 4.13. An annual letter will be required from the manufacturer regarding any changes, or stating no changes, in the quality control program in order to continue certified manufacturer status.
- 4.15 The Division of Housing may immediately seek summary suspension to remove the designation of certified manufacturer status for failure to remedy any of the following conditions after notice from the Division of Housing:
 - 4.15.1 A manufacturer continues working with a third-party agency for which the Division has suspended or revoked authorization.

- 4.15.2 The change of a facility location.
- 4.15.3 The manufacturer has had insignias of approval removed pursuant to Division of Housing procedures.
- 4.15.4 Failure to remedy manufacturing defects or deficiencies as identified by the Division of Housing and failure to provide a quality control program update on corrective actions taken to remedy identified defects or deficiencies.
- 4.15.5 Notification by an authorized third-party agency regarding failure to meet quality control guidelines.
- 4.15.6 The factory is not in compliance with “Performance Criteria for Monitoring Manufacturers and Third-Party Inspection Agencies”.
 - 4.15.6.1 The “Performance Criteria for Monitoring Manufacturers and Third-Party Inspection Agencies” utilizes a combination of qualitative analysis based on deficiencies identified during inspection and qualitative analysis based on systematic failures and recurring serious deficiencies.
- 4.16 A registered manufacturer whose status as a certified manufacturer has been removed by the Division of Housing will resume operations on a higher frequency of inspections until its performance improves and it is recommended for reinstatement of its certified manufacturer status pursuant to Rule 4.12 of these rules.
- 4.17 A certification will remain active if a complete application is submitted to the Division of Housing by the certification expiration date.

Renewal

- 4.18 Each manufacturer is required to resubmit its quality control manual (and when applicable, plans) for approval prior to the registration expiration date that is stamped on the quality control manual. This quality control manual resubmission is required regardless of when plans are approved or structures shipped. Failure to comply with this requirement will result in that manufacturer’s registered location having to comply with the initial registration inspection requirements.
 - 4.18.1 The registration expiration date for all manufacturers is determined by the expiration date that is stamped on the quality control manual. Plans that are submitted at the time of registration or within the registration period shall have the same expiration date as the quality control manual.

- 4.18.2 It is the responsibility of the manufacturer to submit to the Division of Housing the quality control manual for approval within the authorized sixty (60) day renewal window prior to the expiration date.

Plan Review

- 4.19 All registered or certified manufacturers must obtain prior approval of each set of designs from the Division of Housing or an authorized third-party agency before constructing structures under those plans.
- 4.19.1 The Division of Housing and authorized third-party agencies will utilize redline comments for minor changes and corrections.
- 4.20 Plan approvals are granted to a manufacturer for a specific manufacturing facility and are not transferable to other manufacturing facilities including those of the same manufacturer.
- 4.21 Applications for plan review and approval must be submitted electronically to the Division of Housing and must be accompanied by the appropriate fees from Rule 3 of these rules.
- 4.21.1 The application must include the quality control manual; it must meet or exceed the minimum requirements as specified by the Division of Housing.
- 4.21.1.1 Any structures requiring on-site construction (OC) as defined in Rule 1.29 of these rules, must be clearly denoted on the submitted plans for determination of the structure as an “OC” structure. The manufacturer is required to follow the Division of Housing’s “On-site Construction Procedures” when the structure is determined to require OC. Determination of an OC may happen during plan approval or after plan approval. Fire suppression systems assembled, installed, and tested on-site will be considered OC.
- 4.21.2 All applications must list an officer of the manufacturer that is in a responsible position with the authority to commit the manufacturer to comply with the rules and regulations that govern the regulation of its factory-built structures or tiny homes.
- 4.21.3 All regional models will be built to the regional design criteria as outlined in Appendix A of these Administrative Rules. The construction plans will clearly delineate the regional building design criteria. Regional models may be installed in multiple locations across Colorado where the approved regional model plan meets or exceeds the regional design criteria adopted by the Division of Housing.

Site-specific models can be designed using site-specific wind and snow loads but must, at a minimum, meet the other minimum requirements in Appendix A of these Administrative Rules. Site-specific models may only be transferred to other locations with Division of Housing approval.

- 4.21.4 Multi-family plans submitted for review must include the applicable sections required by the Division of Housing plan review checklist. Included in that submittal, the plans must have a separate section that clearly describes the details for the installation of that building including, but not limited to, structural connection hardware and fasteners, sheer wall schedules, hold down schedules, plating and drag requirements, and all connections that need to be inspected during the setting of the modular structures, and must provide a separate manufacturer installation handbook that is clearly referenced on the cover sheet of the plan set, preferably where the building codes are referenced.
- 4.22 An application will expire, and all fees are forfeited, if it is not completed within 120 days of the initial application date.
- 4.22.1 Expired applications must be resubmitted as new applications electronically with documentation and fees.
- 4.23 In order to be considered approved, plans and quality control manuals must be stamped by the Division of Housing or authorized third-party agency. Revisions, additions, or deletions will not be acceptable without prior approval.
- 4.23.1 An approved copy of the quality control manual and plan must be retained at the place of manufacture.
- 4.23.1.1 They must be kept on file within the specific location of manufacture for the purpose of construction and inspection by Division of Housing inspectors or the authorized third-party agency.
- 4.24 Plan approval does not guarantee a manufactured structure constructed from the approved plan will also be approved. All structures must also undergo an inspection and receive an insignia of approval in order to be considered certified by the State of Colorado. A plan approval does not prevent the Division of Housing or the authorized third-party agency from requiring the correction of errors found in the plans or the structure itself, when found in violation of these rules.
- 4.25 Revisions to the approved plan are required where the manufacturer proposes a change in structural, plumbing, heating, electrical, or fire life safety systems. Such changes must become part of the approved plan unless the Division of Housing determines that the change constitutes a new structure. If determined a new structure, the interim change will be processed as a new application. Any difference in fees will also be assessed.

- 4.26 The Division of Housing will approve unchanged plan renewals it previously reviewed and approved, provided there has been no change in adopted codes and the manufacturer's officer in Rule 4.21.2 above certifies in writing that the plans are identical to those previously approved by the Division. A "Supplemental Plan Check Fee" will apply for plan renewals.
- 4.26.1 Should it be determined by the Division of Housing that unauthorized changes have been made to an approved plan, the manufacturer will be subject to a "Red Tag Fee" for every structure built to the changed plans, and the Division may require additional inspections to ensure the code compliance of the structures.
- 4.27 When amendments to these regulations require changes to be made to an approved plan, the Division of Housing will notify the manufacturer of the requirement and allow it a reasonable time to submit revised plans for review and approval. Revised plans will be processed as interim changes with the appropriate fees assessed.
- 4.28 Approved plans using the adopted regional design criteria are considered approved until adopted regional design criteria are amended. When the Division of Housing adopts updated building codes or design criteria, only approved plans impacted by the change must be re-submitted for Division review and approval.
- 4.29 Tiny home plans must include: details on the vehicle chassis, including drawings and connections, and whether the tiny home is going to be installed on a permanent or temporary foundation.
- 4.30 The Division of Housing may screen plans (i.e., spot check plans to ensure minimum design criteria are met for the selected region or specific site) or conduct a full audit of plans to ensure plans meet the minimum design criteria and code requirements.

Inspections

- 4.31 All structures manufactured, sold, or offered for sale in the state of Colorado must display the Division of Housing insignia of approval affixed either by the Division of Housing, an authorized third-party agency, or by a certified manufacturer. These insignias certify that the structure is constructed in compliance with applicable codes and regulations adopted by the State Housing Board. This does not apply to factory-built structures or tiny homes manufactured or sold for transportation to and installation in another state. However, if the structure were to return to Colorado for use, then it would require an insignia issued by the Division of Housing.
- 4.31.1 Registered (non-certified) and certified manufacturers must apply for Colorado insignias through the Division of Housing and submit the appropriate fees provided in Rule 3 of these rules.

- 4.31.1.1 For structures that are completed at the manufacturing facility (do not require on-site construction), insignias will be affixed to each structure only upon final inspection approval by the Division of Housing or an authorized third-party agency.
- 4.31.1.2 For structures that have OC items, insignias will be affixed to each structure after an OC inspection by the Division of Housing, an authorized third-party agency, or a local building department that has agreed to accept responsibility for the inspection of the OC items.
- 4.31.1.3 Insignias affixed by an authorized third-party agency or a certified manufacturer must be reported to the Division of Housing, including the insignia number, type of insignia of approval affixed (residential or commercial), manufacturer, serial number, date of manufacture of the structure, and the first destination of the shipped structure. A manufacturer is required to provide a copy of its monthly production report.
 - 4.31.1.3.1 The Division of Housing may elect to not issue additional insignias of approval to an authorized third-party agency or certified manufacturer if all insignias affixed are not timely and completely reported.
- 4.31.2 Insignias are assigned for use at a specific location and cannot be transferred or used on an unapproved structure. Colorado insignias of approval issued for one type of certification may not be used on a structure of another (different) type. A silver 3"x5" primary insignia (one- or two-family dwellings, except tiny homes) documenting manufacturer and design information is required for each structure to be installed in the state, or a blue 3"x5" primary insignia (commercial) documenting manufacturer and design information is required for each box to be installed in the state. A primary pink 3"x5" insignia will be required for each tiny home. A primary black 3x5 insignia will be attached to the primary box or Division of Housing-approved location of each multi-family dwelling unit. A primary light green 3"x5" insignia will be adhered to the primary box of emergency response units.
 - 4.31.2.1 For residential only - each additional habitable floor section requires a silver 2"x2" "Additional Floor Tag" insignia.
 - 4.31.2.2 For commercial only – an approved modification requires a green/silver 3"x5" "Modification" insignia.
 - 4.31.2.3 For commercial only – components of a structure requires a purple 3"x5" "Component-only" insignia.

- 4.31.2.4 Both – factory-built structures inspected for another state requires a dark green 2"x2" "Inspection-only" insignia.
- 4.31.2.5 For emergency response units – each additional box section requires a light green 2"x2" "Additional Floor Tag" insignia.
- 4.31.3 The primary insignia for residential and tiny homes must be permanently affixed inside the kitchen sink cabinet or inside the vanity cabinet if there is no kitchen sink. For certified manufacturers, this must occur prior to structures being removed from the production location that is certified. Additional Floor Tag insignias, if applicable, are to be permanently affixed and located directly under the primary insignia.
 - 4.31.3.1 The primary insignia must contain the serial number, date of manufacture, wind design speed or wind region, roof design load or snow region, seismic zone, and construction codes.
- 4.31.4 Colorado insignias are the property of the state of Colorado and may be confiscated by the Division of Housing upon any violation of these rules. Defaced, marked in error, or voided insignias must be returned to the Division without refund.
- 4.31.5 Dates on insignia are completion dates.
- 4.31.6 For installation and inspection insignias, the name of the installer or inspector is required (not the company name) and the date on the insignia is the date it passed inspection or the date it was installed by a certified installer.
- 4.32 When an on-site inspection reveals that a structure fails to comply with any provision of these rules, the Division of Housing or the authorized third-party agency may affix a "Red Tag Notice" on the structure. All manufacturers must correct any construction code violations within thirty (30) calendar days of inspection. Life safety corrections may require less than thirty (30) days to correct. An extension request may be granted when submitted in writing to the Division of Housing.
 - 4.32.1 Once notified of a "Red Tag Notice" by the Division of Housing or the authorized third-party agency and the specific violation(s), the affected parties must resolve the issue(s) with the entity that posted the notice.
 - 4.32.2 Within five (5) business days, the affected parties or their agents must notify, in writing, the Division of Housing or the authorized third-party agency of the action taken to correct the violation(s) and what steps have been taken by management to prevent recurrence of the violation(s). Failure to respond within five (5) days may cause revocation of an affected party's status.

- 4.32.3 A structure posted with a “Red Tag Notice” cannot be sold, offered for sale, or have occupancy in the state of Colorado, nor can it be moved or caused to be moved without the prior written approval of the Division of Housing or the authorized third-party agency.
- 4.32.4 All structures posted with a “Red Tag Notice” must be corrected or removed from the state (with prior written approval of the Division of Housing or the authorized third-party agency). All structures that are corrected will be re-inspected to ensure compliance with the codes and regulations, and a re-inspection fee will be assessed.
- 4.32.4.1 Multiple violations may result in the Division of Housing suspending plan reviews submitted by the manufacturer until all issues are addressed.
- 4.32.5 A “Red Tag Notice” may be removed only by an authorized representative of the Division of Housing or the authorized third-party inspection agency.
- 4.33 Any changes to factory-built structures (deviations from the Division of Housing-approved plan) prior to or during the construction process must have prior approval from the Division. Once permanently installed and certified for construction, any changes to the structure are under the jurisdiction of the local building department.
- 4.33.1 Any changes to a temporary structure, after it is certified for construction by the Division of Housing, must be made at a registered or certified factory. These changes will require plan approval, inspection, and recertification, as applicable.
- 4.34 The Division of Housing may screen in-plant inspections and spot check inspections or inspection documentation to ensure minimum design criteria are met for the selected region or specific site. The Division may also conduct a full inspection or audit of all systems of construction to ensure the structure meets the minimum design criteria and code requirements.

Authorized Quality Assurance Representatives for Construction Inspection and Plan Reviews

- 4.35 The Division of Housing or the authorized third-party agencies (retained by the manufacturer) will conduct certification and production inspections of all manufacturers engaged in manufacturing or offering factory-built structures for sale and installation in the state of Colorado. This inspection will include the quality control program and systems testing. This does not apply to factory-built structures manufactured or sold for transportation to and installation in another state. However, if the structure were to return to Colorado for use, then it would require an insignia issued by the Division of Housing.

- 4.35.1 Payment of the fees provided in Rule 3 is required if utilizing the services of an inspector from the Division of Housing. This cost is not refundable.
- 4.35.2 Inspections that indicate a deficiency or defect in the manufacturing process or non-compliance with codes will be reported to the third-party agency performing in-plant construction inspections as part of the resolution process.
- 4.35.3 All in-state manufacturers shall have the option to contract with an authorized third-party agency or continue to use the Division of Housing to perform certifications and in-plant production inspections to evaluate its registered/certified location's quality control procedures, approve manufacturer engineering manuals and installation instructions, and/or approve construction plans. Manufacturers must provide, to the Division of Housing, the name and information for an authorized third-party agency contracted to perform in-plant construction inspections. Information will be reviewed and, upon approval by the Division, the third-party agency will be authorized to place insignias for certified manufacturers.
- 4.35.4 Out-of-state manufacturers are required to obtain the services of an authorized third-party inspection agency to perform certifications and in-plant production inspections, to evaluate the plant's quality control procedures, and may use an authorized third-party agency to approve manufacturer engineering manuals, installation instructions, and/or approve construction plans. Manufacturers must provide, to the Division of Housing, the name and information for an authorized third-party agency contracted to perform in-plant construction inspections. Information will be reviewed and, upon approval by the Division, the third-party agency will be authorized to place insignias for certified manufacturers.
- 4.35.4.1 Another state agency where a registered/certified manufacturer is located may act as an authorized third-party agency for certifications, in-plant production inspections and evaluations of their quality control procedures provided it enters into a memorandum of understanding with the Division of Housing and the manufacturer follows all requirements provided in these rules.

Audits

- 4.36 Manufacturers may be audited, per procedures established by the Division of Housing, on the following:
- (A) Administration and financial surety documents including, but not limited to, current registration, bond, and use of authorized third-party agencies.
 - (B) In-plant construction including, but not limited to, ensuring that a structure being produced matches approved plans and meets adopted codes and standards.

- (C) Quality assurance and quality control procedures including, but not limited to, ensuring construction process follows procedures in approved quality assurance/quality control manual; manufacturer is reporting structures under production to the Division of Housing, and confirming that insignias are placed on structures as specified in Rule 1.46.2(C).
- 4.37 Manufacturers found to have corrective actions as a result of an audit or investigation will have thirty (30) calendar days to become compliant. Failure to implement corrective action(s) within this timeframe will result in a financial penalty of \$250. Failure to comply within sixty (60) calendar days will result in a suspension or revocation of registration.
- 4.38 The Division of Housing may send plans for review to a third-party agency contracted by the Division for special cases or expediency.
- 4.39 The Division of Housing will, upon written request, investigate complaints related to adopted construction code interpretation and enforcement. A written request must identify the third-party agency, the location of the structure(s) in question, the nature of the dispute, the code section reference, and all involved parties with contact information. Upon receipt of the request, the Division will contact all parties for a written response to the issues. After any necessary follow-up, the Division will issue to all parties an interpretation to resolve the code dispute. The Division's interpretation may be appealed to the Colorado State Housing Board's Technical Advisory Committee. The decision of the Committee is final.

Specific Requirements for Manufacturing Structures with Fire Suppression Systems

Installations

- 4.40 Manufacturers designing structures with fire suppression systems, to be installed in-plant or on-site, must submit construction plans that include the fire suppression system for review and approval by the Division of Housing or other Division-authorized agency.
 - 4.40.1 Manufacturers and/or building contractors submitting construction plans that include fire suppression systems, not submitted to the Division of Housing, must ensure that the authorized third-party agency employs a qualified fire suppression plan reviewer to review the plan.
- 4.41 Fire suppression systems installed in-plant or on-site must be completed under the supervision of a fire suppression system contractor. The person working under the supervision of the fire suppression system contractor must be a qualified "sprinkler fitter" (as defined by the Colorado Division of Fire Prevention and Control) or have equivalent qualifications or other Division of Housing-approved qualifications.

- 4.42 The certificate of rough inspection (CORI) must be completed for all applicable inspections prior to concealment to include rough installation and testing of the fire suppression system. A copy of the CORI must follow the structure to the installation site.
- 4.43 Fire suppression systems installed on-site (either partially or completely), prior to the certification of the construction by the Division of Housing, are on-site construction items per the Division's OC process. A fire suppression system installer must be a qualified sprinkler fitter (as defined by Colorado Division of Fire Prevention and Control) or have equivalent qualifications or other Division of Housing-approved qualifications.
- 4.43.1 If a fire suppression system is installed after the Division of Housing certification, the design approval and certification must be approved by the local authority having jurisdiction.
- 4.43.2 For structures that need to have a fire suppression system retrofitted on-site, the fire suppression system contractor must submit the design to the Division of Housing or an authorized third-party agency plan reviewer for final approval prior to installation.

Inspections

- 4.44 For in-plant inspections of structures with fire suppression components or systems, the manufacturer must ensure that a CORI is completed for each structure, prior to concealment of the system, by an authorized third-party agency, and signed prior to shipment. The CORI must travel with the structure to the installation site.
- 4.45 Fire suppression systems assembled, installed, or tested on-site must be inspected to the Division of Housing-approved plan by either the local government, authorized third-party agency, Division of Housing, or Division of Fire Prevention and Control-qualified personnel with Fire Inspector II or the State-approved fire suppression system inspector credentials. The CORI must document all rough and final inspections performed, to include required tests, performed in the factory, prior to final certification of the structure.
- 4.45.1 Fire suppression systems installed after the Division of Housing certifies the unit must comply with the local authority having jurisdiction.

Rule 5. Third-Party Agencies

- 5.1 A third-party agency may consist of one of the following entities (any exceptions must have prior approval by the Division of Housing):
- (A) States – must enter into a memorandum of understanding with Colorado.

- (B) Local Governments – must inspect to Division-approved rules, where applicable, with regard to the construction of the structure and its installation.
 - (C) Firms – must currently be listed with a national listing agency, such as the International Code Council (ICC), International Accreditation Service (IAS), or other Division-approved entity.
- 5.2 A third-party agency may elect to perform the following functions if authorized by the Division of Housing:
- (A) In-plant construction inspections (states and firms),
 - (B) Final construction plan review and approval, for plans sent directly to third-party agencies by manufacturers (firms),
 - (C) On-site construction inspections (local governments unless deferred, firms)
 - (D) Oversight inspections (states, firms, and local governments)
 - (E) Review and approve construction plans, submitted by manufacturers directly to the Division of Housing - i.e., the Division could contract with a third-party agency (firms), or
 - (F) Fire suppression systems plan reviews and inspections (local governments, Division of Fire Prevention and Control)

Authorization

- 5.3 Third-party agencies, other than another state, may perform production inspections, recommendations for certified manufacturer status, evaluate quality control procedures, approve engineering manuals, approve plans, or provide OC inspections once authorized by the Division of Housing and approved to act on its behalf. This rule does not apply to other state agencies; refer to Rule 5.6. Authorization applications must contain the following minimum requirements:
- (A) Name and address of the entity making application.
 - (B) Categories for which the third-party agency seeks authorization.
 - (C) A list of key personnel, with resumes, indicating their primary functions or duties. Identify who will be responsible for inspection of fire suppression systems in-plant and their credentials.
 - (D) The number of years the entity has actively engaged in the business for which it seeks approval.

- (E) A statement by the third-party agency that it will adhere to all the requirements of the Division of Housing.
 - (F) An explanation of its plan review, factory certification, or inspection procedures, including copies of the quality assurance/control and other inspection reports.
 - (G) A copy of the third-party agency's ICC or IAS accreditation. The Division of Housing may consider alternative accreditation upon request.
 - (H) A copy of the Colorado professional engineer or architect license for any employee that will be responsible for plan review and approval work, as applicable.
 - (I) A copy of the Colorado professional license or ICC building inspector certifications (commercial or residential) for all personnel that will be performing production facility inspections, as applicable.
 - (J) Agreement to furnish any other existing records that the Division of Housing may deem necessary in order to properly evaluate and grant approval.
 - (K) A statement that it is independent and does not have any actual or potential conflict of interest and is not affiliated with, influenced by, or controlled by any present or potential client manufacturer in any manner that might affect its capacity to render service or reports of findings objectively and without bias.
 - (L) The request must contain the signature of a responsible officer, owner, or partner of the submitting third-party agency.
 - (M) A list of manufacturers of factory-built structures that are currently clients of the third-party agency.
- 5.3.1 In addition to the items listed in Rule 5.3, third-party agencies applying for authorization to review and approve construction plans must provide the materials below and a letter of intent, for approval by the Division of Housing, for construction to begin. Before receiving approval, the third-party agency must submit at least three (3) plans, to be reviewed by the Division, that do not have any life-safety issues or design criteria errors. The Division may request to review additional plans or may conduct audits to assess compliance prior to issuing authorization. Authority for final construction approval will be in writing from the Division to the third-party agency.
- 5.3.1.1 Third-party agencies recommending certified manufacturer status must also provide details and documentation on how the agencies' evaluation process meets the Division of Housing's

criteria in Rule 4.12 of these rules. This should include checklists, pass/fail criteria, a sample recommendation, and internal quality control and quality improvement documentation.

5.3.1.2 Third-party agencies providing plan reviews for structures with a fire suppression system must use a fire suppression plan reviewer for review and approval of the fire suppression system.

5.3.2 In addition to the items listed in Rule 5.3, for third-party agencies applying for authorization to perform oversight inspections of factory-built structures for registered or certified manufacturers at a seller's lot or at the installation location, the third-party agency must provide documentation and a letter of intent, for approval by the Division of Housing, to perform oversight inspections on behalf of the Division and place oversight insignias.

5.3.2.1 Third-party agencies requesting to certify the construction of factory-built structures at the site location must also submit evidence of the following:

- (1) Verify that accountable personnel conducting the inspections are capable of identifying and addressing non-conforming items related to the construction of the structure and not site-built components other than on-site construction (OC) items,
- (2) Verify that training has been achieved for all accountable personnel conducting site inspections,
- (3) Verify an established and functioning quality control program for site inspections, and
- (4) The third-party agency must inspect one (1) structure from three (3) different models at the site location, and audited for compliance with the adopted codes by the Division of Housing.

5.3.2.2 Fire suppression systems must be inspected by a Fire Inspector II or a Division of Fire Prevention and Control- qualified inspector. The authorized third-party agency must ensure that a CORI is completed for each structure and signed prior to shipment.

5.3.3 In addition to the items listed in Rule 5.3, third-party agencies applying for authorization to perform installation inspections of residential factory-built structures must provide documentation and a letter of intent to inspect installations of residential factory-built structures and place installation insignias.

- 5.3.3.1 For installation inspections for the completion of a structure, the fire suppression system must be inspected by a Fire Inspector II or a Division of Fire Prevention and Control-qualified inspector.
- 5.3.4 In addition to the items listed in Rule 5.3, third-party agencies applying for authorization to perform on-site construction (OC) inspections at an installation site must provide documentation and a letter of intent to the Division of Housing for review.
 - 5.3.4.1 Fire suppression systems that are OC must be inspected by a Fire Inspector II or a Division of Fire Prevention and Control-qualified inspector.
- 5.4 Authorizations are limited to one year. A new letter of intent and any changes to the original submittal material must be submitted to the Division of Housing annually.
- 5.5 An authorization will remain active if a complete application is submitted to the Division of Housing by the registration expiration date.
- 5.6 Other states that want to operate as a third-party agency inspecting registered/certified manufacturers located in their states, and structures manufactured in their states that are to be shipped to Colorado, must have existing statutory authority to regulate the design and construction of factory-built structures and enter into a memorandum of understanding with Colorado to establish recognition of the following:
 - (A) Acceptance of construction codes that are adopted by the State of Colorado Housing Board for factory-built structures sold into or offered for sale in Colorado. (See Rule 2 of these rules).
 - (B) Acceptance of the design evaluation and approval performed by the Division of Housing or other third-party agency for structures sold into or offered for sale in Colorado.
 - (C) Performance of facility certifications and other inspection requirements. Routine inspections include performing inspections of at least one (1) structure in each phase of manufacturing and performing a minimum of a rough, final, and other inspections or tests (as required in Rule 2 of these rules) when a production line process is not being utilized. Also to place the manufacturer on a higher inspection frequency when it is unable to conform to approved quality control procedures or approved plans and standards.
 - (D) Evaluation, at the manufacturing facility, of code compliance problems resulting from consumer complaints on labeled Colorado structures; work with the manufacturer(s) in resolving such complaints by adequately following up and assisting them in correcting the complaint issue(s), and

their production or inspection process. Inspections that indicate a deficiency or defect in manufacturing process or non-compliance with codes will be reported to the third-party agency performing in-plant construction inspections as part of the resolution process.

- (E) Provide sixty (60) calendar days' notice before withdrawing from the memorandum of understanding, thereby allowing a manufacturer sufficient time to obtain a new third-party agency.
 - (F) Fire suppression systems must be inspected by a Fire Inspector II or other Division-approved fire suppression system inspector.
- 5.7 The third-party agency contracted for in-plant inspections is required to inspect to the adopted building codes and design criteria in the most recent Administrative Rules. Manufacturers contracted with a firm to perform their inspections are required to be inspected by that entity. A manufacturer may contract with more than one authorized third-party agency to perform these services. If more than one third-party agency is under contract, the Division of Housing must be notified as to which inspections each agency is assigned; more than one agency cannot be assigned to the same inspection.
- 5.7.1 Authorized third-party agencies may conduct certifications, in-plant production inspections, recommend certified manufacturer status, in-plant evaluations of the plant's quality control procedures, review manufacturer engineering manuals, in accordance with Division of Housing-approved procedures and documents.
 - 5.7.2 The structure will be inspected to the approved plans, except where the plans are not specific, then the inspection will be to the adopted building codes and design criteria in the most recent Administrative Rules. The third-party agency will also monitor the facility personnel performing the construction, testing, and inspections.
 - 5.7.3 A third-party agency, when a facility is not certified, must conduct at a minimum a rough, final, and other inspections as required per code (see Rule 2 of these rules) for all manufactured structures. For tiny homes, a vehicle chassis inspection must be completed.
 - 5.7.4 After the Division approves certified status for a manufacturer based on the recommendation from an authorized third-party agency, or the Division of Housing if the manufacturer has requested the Division grant it certified manufacturer status, a minimum of one (1) phase of construction for each structure being produced for Colorado must be inspected by the third-party agency. In the course of each visit, the third-party agency may also complete an inspection of every phase of the production, systems testing, and of every structure in production, as well as a random sampling of finished product on-site.

5.7.5 When a third-party agency finds that a manufacturer is unwilling or unable to conform to the approved quality control procedures, or approved plans or Administrative Rules, that manufacturing facility will be placed on a higher inspection frequency. The Division of Housing must be notified and the certification labels for structures held until the manufacturer demonstrates that it can perform within its approved standards. If, after three (3) consecutive inspections, the last inspection still indicates that the manufacturer is not able to perform within standards, all remaining insignias paid for by the manufacturer will be returned to the Division and the manufacturer will need to reapply for certified status after the time period in Rule 12.1.1.

5.7.5.1 Additional information, such as increased frequency and routine quality assurance/control inspection reports, may be requested by the Division of Housing in order to review the inspections conducted on specific structures.

5.7.6 The third-party agency is required to provide its own inspection label to be affixed adjacent to the Colorado insignia of approval on each structure to be installed in Colorado that has passed inspection prior to shipping.

5.7.7 Third-party agencies that wish to perform inspections of registered/certified manufacturers and their structures must agree to the following:

- (A) Acceptance of construction codes that are adopted in the Administrative Rules for factory-built structures sold into or offered for sale in Colorado. (See Rule 2 of these rules).
- (B) Acceptance of the design evaluation and approval performed by the Division of Housing or third-party agency for structures sold into or offered for sale in Colorado.
- (C) Acceptance and use of the Division of Housing's "Performance Criteria for Monitoring the In-Plant Quality Control Systems of Factory-built Plants" for in-plant inspection agencies or Division-authorized third-party agency adopted criteria.
- (D) Acceptance and use of the Division of Housing's "Performance Criteria for Factory-Built Plan Review and Approval" for plan review agencies or Division-approved agency adopted criteria.
- (E) Performance of facility certifications and other inspection requirements. Routine inspections include performing inspections of at least one (1) structure in each phase of manufacturing and performing a minimum of a rough, final and other inspections or tests (as required in Rule 2 of these rules) when a production line process is not being utilized. Also to place the manufacturer on a

higher inspection frequency when it is unable to conform to approved quality control procedures or approved plans and standards.

- (F) Performance of inspection requirements. Routine inspections include performing inspections of at least a minimum of a rough, final, or other inspections or tests of on-site construction items. Also to notify the Division of Housing when a manufacturer is unable to conform to approved plans, standards, or make appropriate corrections to construction code compliance issues.
- (G) Evaluation at the manufacturing facility of code compliance problems resulting from consumer complaints on a Colorado-labeled structure; work with the manufacturer(s) in resolving such complaints by adequately following up and assisting them in correcting the complaint issue(s) and their production or inspection process.
- (H) Provide sixty (60) calendar days' notice if no longer interested in fulfilling the above terms, thereby allowing a manufacturer sufficient time to obtain a new third-party agency.

5.7.8 Third-party agencies may only work in the specific categories for which the Division of Housing has granted authorization in writing.

5.7.8.1 Third-party agencies performing different functions (e.g., plan reviews and inspections) related to the same set of construction plans for a manufacturer must use different individuals or teams to perform each function to ensure integrity.

5.8 Nothing in this rule limits a local jurisdiction or a local fire department from becoming a participating jurisdiction or an authorized quality assurance representative for installation inspections, on-site construction inspections, or oversight inspections. Local jurisdictions or local fire departments will not be charged a review fee for an authorization request, but qualifications and letter of intent must be provided.

Audits

5.9 The performance (every aspect of all actions) of all third-party agencies will be periodically monitored or audited by the Division of Housing at a frequency adequate to ensure that they are fulfilling their responsibilities as required in these rules. The purpose of these audits is to evaluate the performance of the third-party agency in ensuring the selected structures comply with approved plans and construction codes. Based upon finding(s) of inadequate performance, the inspection frequency may be increased as determined by Division procedures.

- 5.9.1 The monitoring activities carried out by the Division of Housing include, but are not limited to, the following:
- (A) Performing oversight inspections on structures that are shipped to Colorado or produced for delivery in Colorado.
 - (B) Reviewing all records of interpretations of the standards made by the third-party agency to determine whether they are consistent and proper.
 - (C) Reviewing inspection reports, records, and other documents to ensure that third-party agencies are carrying out all their responsibilities as set forth in these rules.
 - (D) Reviewing records to assure that the third-party agency is maintaining proper label control and records pursuant to requirements.
- 5.9.2 Third-party agencies may be subject to, and responsible for payment of, an audit fee for an audit of the services they provide.
- 5.10 Third-party agencies are audited based on functions performed, per procedures established by the Division of Housing, on the following:
- (A) In-plant construction inspection compliance including, but not limited to, monitoring that a structure is being built to the approved plans and ensuring that any discrepancies are reported to the plan reviewer, if modifications are needed to the plan.
 - (B) Plan reviews including, but not limited to, screening submitted plans and selecting a subset of submitted plans to audit.
 - (C) QC manual compliance including, but not limited to, how third-party agencies are tracking inspections, processes for managing discrepancies, verifying that the third-party agency is referencing approved plans, and processes for placing third-party agency inspection labels on structures.
 - (D) Oversight/on-site completion inspections including, but not limited to, verifying that all items approved for factory completion are finished and no items were reported for completion on-site.
- 5.11 Third-party agencies found to have corrective actions as a result of an audit or investigation will have thirty (30) calendar days to become compliant. Failure to cure corrective actions within this timeframe will result in a financial penalty of \$250. Failure to comply within sixty (60) calendar days will result in a suspension or revocation of authorization.

- 5.12 As part of a complaint investigation, the Division of Housing may request inspection records as necessary.
- 5.13 The Division of Housing may screen construction plans or other third-party agency documentation to ensure structures meet minimum design criteria for the selected region or specific site. The Division may also conduct a full audit to ensure that plans and structures meet the minimum design criteria and code requirements.
- 5.14 The Division of Housing may send plans for review to a third-party agency contracted by the Division for special cases or expediency.

Rule 6. Building Contractors

- 6.1 A building contractor, as defined in section 30-11-125(1)(a), C.R.S., and in Rule 1.3, who oversees the preparation of an installation site or on-site construction to complete a factory-built structure, is required to register with the Division of Housing annually, unless they are already licensed by a local government where the factory-built structure work is being performed. See Rule 3 for the registration fee schedule.
 - 6.1.1 Plumbers, electricians, fire suppression system contractors, and other construction trades are not considered building contractors unless they are overseeing the preparation of an installation site or on-site construction to complete a factory-built structure. If these trades are contracted to oversee the project, they must be registered as a building contractor with the Division of Housing if the local building department does not issue a building contractor license.
 - 6.1.2 A homeowner may act as a building contractor to perform installation site preparation or on-site construction work. Homeowners are not required to register as a building contractor with the Division of Housing, but must notify the Division of their intent to serve as their own building contractor, if the homeowner performs installation site preparation or on-site construction work on their own factory-built structure that is a one- or two-family dwelling or a tiny home intended for the homeowner's own personal use. The homeowner must comply with all requirements in this Rule 6, other than registration requirements. A homeowner is limited to performing site preparation or on-site construction work for one (1) factory-built structure in any twelve-month period and no more than five (5) during the homeowner's lifetime.
 - 6.1.2.1 A homeowner acting as a building contractor to complete their own factory-built home or tiny home shall perform installation site preparation or on-site construction work. If the homeowner has another person or entity perform installation site preparation or on-site construction work, that person or entity must be licensed by the

local jurisdiction as a building contractor, or registered with the Division of Housing. Homeowners should check with their local jurisdiction regarding local licensing or registration requirements.

Registration

6.2. Registration with the Division of Housing will be considered a state-wide registration but does not apply in a jurisdiction that requires the building contractor to be licensed in order to operate there.

6.3 A building contractor must submit the following to register:

- Proof of general liability insurance of at least \$1,000,000 per occurrence;
- Names of the principals of the company;
- Proof of factory-built structure education provided by or through the Division of Housing, or another Division-approved education provider; and
- Certificate of Good Standing from the Colorado Secretary of State.

6.3.1 Building contractors applying for registration to work on one- or two-family residential factory-built structures must meet the following requirements in addition to the requirements in Rule 6.3.

6.3.1.1 (A) A minimum of twelve (12) months of verifiable, full-time experience in the construction industry. Experience must be documented and supervised by a licensed or registered building contractor, engineer, or architect. Contractors registered, certified, or licensed to operate as a building contractor in a local Colorado jurisdiction, or in another U.S. state (if that state's requirements are substantially equivalent to the Division of Housing's) may count that experience toward the twelve (12)-month requirement. The prior registration, certification, or license must have been in good standing.

AND

(B) Proof of successful completion of the International Code Council G13 or F13 National Standard Residential Building Contractor (C) exam for work on structures limited to a height of not more than three stories above grade.

6.3.2 Building contractors applying for registration to work on multi-family residential structures must meet the following requirements in addition to the requirements in Rule 6.3.

- 6.3.2.1 (A) A minimum of twelve (12) months of verifiable, full-time experience in the construction industry. Experience must be documented and supervised by a licensed or registered building contractor, engineer, or architect. Building contractors registered, certified, or licensed to operate as a building contractor in a local Colorado jurisdiction, or in another U.S. state if that state's requirements are substantially equivalent to the Division of Housing's, may count that experience toward requirements. The building contractor's prior registration, certification, or license must have been in good standing.

AND

- (B) Proof of successful completion of the International Code Council G12 or F12 National Standard General Building Contractor (B) exam for work on multi-family residential or commercial structures regulated by the International Building Code (IBC), not considered high rise as defined by the International Code Council.

- 6.3.3 Building contractors applying for registration to work on commercial factory-built structures must meet the following requirements in addition to the requirements in Rule 6.3.

- 6.3.3.1 (A) A minimum of twelve (12) months of verifiable, full-time experience in the construction industry. Experience must be documented and supervised by a licensed or registered building contractor, engineer, or architect. Building contractors registered, certified, or licensed to operate as a building contractor in a local Colorado jurisdiction, or in another U.S. state if that state's requirements are substantially equivalent to the Division of Housing's, may count that experience toward requirements. The building contractor's prior registration, certification, or license must have been in good standing.

AND

- (B) Proof of successful completion of the International Code Council G11 or F11 National Standard General Building Contractor (A) exam for work on commercial buildings regulated by the International Building Code (IBC), considered high rise as defined by the International Code Council.

- 6.4 All building contractors who supervise site preparation or on-site construction work, whether registered by the Division of Housing or a local government, must complete factory-built structure general contractor training as determined by the

Division. A certificate of completion must be filed with the registration application. The education must be completed by an individual or individuals with direct oversight of the on-site work.

Responsibilities

- 6.5 A registered building contractor is responsible for verifying that any factory-built structure on which they perform installation site preparation, on-site construction, or any other work holds current approval by the Division of Housing for use in Colorado prior to starting any such work.
- 6.6 Building contractors may be responsible for the following activities:
 - 6.6.1 Site preparation work related to completing the structure: local governments are responsible for inspecting site preparation work. However, in areas of the state that do not have a building department, the Division of Housing is responsible for foundation inspections and any other site preparation work for modular projects, as well as site preparation for on-site constructed hotels, motels, and multi-family structures. Corrections and deficiencies identified by the Division of Housing in areas of the state where there is no building department are the responsibility of the building contractor to correct.
 - 6.6.2 On-site construction (OC) work related to completing the structure: the registered building contractor is responsible for any corrective actions identified by the Division of Housing necessary to complete the structure.
 - 6.6.2.1 Building contractors completing OC work related to the completion or installation of a fire suppression system must follow the manufacturers' instructions on the completion of the fire suppression system and sign the CORI.
 - 6.6.3 Permission for utility connections and other connections to infrastructure that may require inspections are the responsibility of the local jurisdiction or the Department of Regulatory Agencies.

Education

- 6.7 To be eligible for registration, building contractors must complete a four (4)-hour mandatory training course focused on factory-built structures and the specific Administrative Rules and statutes governing factory-built structures in Colorado, or another Division of Housing-approved education or training course.
- 6.8 Four (4) hours of continuing education are required annually to renew registration. The Division of Housing will review all educational courses submitted and will grant course approval in writing. The Division of Housing may audit courses and may request from each entity offering a Division-approved course, all instructional material and attendance records as may be necessary for an

investigation. Failure to comply may result in the Division withdrawing approval of the course.

6.9 All continuing education courses must contain at the minimum the following instructional material:

- (A) Blueprint reading and comprehension.
- (B) Discussion of structural issues. For example: hinged roofs, cape cod roofs, marriage line fastening and support, foundation sizing, etc.
- (C) A review of Colorado law, rules and/or policies as they pertain to the technical issues being discussed at the training.

6.10 All continuing education courses may be offered and completed by distance learning.

6.11 The following course format and administrative requirements apply to all Colorado continuing education for factory-built building contractors:

- (A) Courses must be at least one hour in length and contain at least 50 instructional minutes per course hour.
- (B) A maximum of eight (8) hours of credit may be earned per day.
- (C) No course may be repeated for credit in the same registration period.
- (D) Instructors may receive credit for classroom teaching hours once per course taught per year.
- (E) A volunteer member of the State Housing Board's Technical Advisory Committee (TAC) may receive credit for participating in the process of recommending rule amendments/adoptions once per year.
- (F) Hours in excess of the required amount may not be carried forward to satisfy a subsequent renewal requirement.
- (G) No school/provider may waive, excuse completion of, or award partial credit for the full number of course hours.

6.12 Each Colorado factory-built building contractor is responsible for securing from the provider evidence of course completion in the form of an affidavit or certificate of attendance. Documentation must be in sufficient detail to show the name of the contractor, course subject, content, duration, date(s), and contain the authentication of the provider.

6.12.1 For distance learning an affidavit of completion signed under penalty of perjury is the only acceptable proof.

- 6.12.2 In person courses may have a certificate signed by the instructor at the end of the course.
- 6.12.3 Building contractors must retain proof of continuing education completion for three (3) years, and provide said proof to the Division upon request.
- 6.13 Each approved education provider must retain copies of course outlines or syllabi and complete attendance records for a period of three (3) years.
- 6.14 Continuing education providers must submit an application form along with the following information at least thirty (30) days prior to the proposed class dates:
- (A) Detailed course outline or syllabus, including the intended learning outcomes, the course objectives, and the approximate time allocated for each topic.
 - (B) A copy of the course exam(s) and instructor answer sheet if applicable. In the absence of an exam, the criteria used in evaluating a person's successful completion of the course objectives.
 - (C) Copy of instructor teaching credential; if none, a resume showing education and experience which evidence the mastery of the material to be presented.
 - (D) A copy of advertising or promotional material used to announce the offering.
 - (E) Upon Division request, a copy of textbook, manual, audio, videotapes, or other instructional materials.
- 6.15 By offering building contractors continuing education in Colorado, each provider agrees to comply with relevant statutes and rules and to permit the Division of Housing to audit courses at any time and at no cost.

Renewals

- 6.16 A registered building contractor is required to timely renew their registration annually and in compliance with the requirements of this Rule 6 in order to continue working on factory-built structures in the state of Colorado.
- 6.16.1 A renewal application filed with the Division of Housing must include evidence of completing at least four (4) hours of Division-provided education in compliance with the education requirements listed in Rules 6.8 and 6.9.
- 6.17 A registered building contractor must timely and completely renew their registration with the Division of Housing as required in Rule 6.16 in order to

maintain their registration. A registration will automatically expire if it is not successfully renewed.

- 6.18 A registration will remain active if a complete application is submitted to the Division of Housing by the registration expiration date.

Audits

- 6.19 Audits for building contractors, per procedures established by the Division of Housing, shall occur annually. Audits will primarily focus on, but are not limited to, administrative compliance and site work.
- 6.20 Fees: there are no additional fees charged for the administrative portion of the audit. However, additional fees or fines may be assessed for issues related to site work or for recurring compliance deficiencies identified during an audit.
- 6.21 Required documentation: as part of the registration renewal audit, building contractors will be required to demonstrate compliance with, and provide documentation related to, the requirements listed below.
- (A) Structure Reporting: documentation confirming the reporting of all structures completed on-site during the preceding registration period.
 - (B) Foundation Plan Submission: proof of submission of all required foundation plans to the Division of Housing for projects located in jurisdictions that do not have established building departments.
 - (C) Contractor Education: evidence of maintaining required Division of Housing-provided or Division-approved education necessary for registration or renewal.
 - (D) Financial and Insurance Coverage: maintenance and continuation of all required financial surety documents and insurance coverage, including disclosure of any lapses in required coverage and certification that no work was conducted during any such lapse period.
 - (E) Complaints: review of any complaints for work completed by building contractors that relates to site work, foundations, or other items related to the compliance and use of a structure. The Division of Housing may review complaints related to factory-built structures or other areas the Division is responsible for including, but not limited to, foundations and site-built hotels, motels, and multi-family structures in jurisdictions without a building department.
- 6.22 Building contractors found to have corrective actions as a result of an audit or investigation, will have thirty (30) calendar days to become compliant. Failure to implement corrective action(s) within this timeframe will result in a financial

penalty of \$250. Failure to comply within sixty (60) calendar days will result in a suspension or revocation of registration.

Rule 7. Local Governments

- 7.1 Local governments may perform the following functions: installation inspections and on-site construction (OC) inspections by becoming a participating jurisdiction as defined in Rule 1.31.
 - 7.1.1 Audits for a participating jurisdiction will be conducted annually to ensure ongoing compliance with requirements necessary to maintain authorization and may include a review of the jurisdiction's installation and insignia reporting, or a review of installation inspections. The Division of Housing may waive applicable audit fees.
 - 7.1.2 Local governments performing an OC inspection of a fire suppression system must have a Fire Inspector II or Division of Fire Prevention and Control-authorized individual to perform the fire suppression system inspection and testing.
- 7.2 Local governments may charge fees for inspections not performed by the Division of Housing or other authorized parties on behalf of the Division.
- 7.3 Local governments may not charge for plan review time or services related to the construction standards of the factory-built structure. Local governments may charge a plan review fee for permit review, permits, and plan review time for non-factory-built structures whether attached to, or separate from, the factory-built structure(s). Non-factory-built structures include porches, garages, basements, stairwells, etc.
- 7.4 Local governments may not require a factory-built structure to be built to a construction code or design standard that is not a code or design standard adopted by the Division of Housing through the State Housing Board. Local sustainability requirements are not construction codes or design standards.
 - 7.4.1 A local government may require compliance with its own site-specific criteria that are external to the completion of the factory-built structure and its installation, e.g., foundation systems.
- 7.5 Per the Wildfire Resiliency Code, the Division of Housing is only responsible for structure hardening for factory-built structures. Defensible space requirements are the responsibility of the local authorities having jurisdiction.
- 7.6 Local governments issuing permits for factory-built structure installations must ensure that any building contractor overseeing installation site preparation or on-site construction work for a factory-built structure is licensed as a contractor by the local jurisdiction where the work is taking place or registered as a building contractor with the Division of Housing, per Rule 6.1.

- 7.6.1 Local governments licensing building contractors or general contractors, as defined in Rule 1.3, are encouraged to ensure that a contractor overseeing installation site preparation or on-site construction work has completed the Division of Housing-required factory-built structure education required in Rules 6.7 or 6.8.
- 7.7 Local governments will not be charged any registration fees or insignia fees.
- 7.8 Local governments shall not require an individual or business entity solely performing an “installation” as defined by section 24-32-3302(16), C.R.S., to obtain a separate registration or licensing other than general business or tax licensing to operate in their jurisdiction since they are already required to register with the Division of Housing to perform installations in all jurisdictions.
 - 7.8.1 Installers performing site preparation or on-site construction work that is outside the scope of an “installation” as defined by section 24-32-3302(16), C.R.S., must be licensed by the local jurisdiction as a building contractor or registered as a building contractor with the Division of Housing.
- 7.9 As part of a complaint investigation, the Division of Housing may request inspection records as necessary.
- 7.10 Any changes to factory-built structures (deviations from the Division of Housing-approved plan) prior to or during the construction process must have prior approval from the Division. Once permanently installed and certified for construction, any changes to the structure are under the jurisdiction of the local building department.
 - 7.10.1 Any changes to a temporary structure, after it is certified for construction by the Division of Housing, must be made at a registered or certified factory. These changes will require plan approval, inspection, and recertification, as applicable.

Rule 8. Other Colorado State Agencies

- 8.1 The Division of Housing is responsible for all factory inspections, plan reviews, and installations for in-state and out-of-state factory construction for structures to be installed in Colorado. This includes electrical, plumbing, gas, construction, fire suppression, and wildfire structure hardening.
- 8.2 The Division of Housing is responsible for all inspections related to the completion and installation of the structure on-site. Connection to utilities is the responsibility of the local jurisdiction, which may defer these to other state agencies, such as the Department of Regulatory Agencies and the Division of Fire Prevention and Control.

- 8.2.1 Plumbing connections related to the completion of the factory-built structure or the installation of the factory-built structure are the responsibility of the Division of Housing.
- 8.2.2 Electrical connections related to the completion of the factory-built structure or the installation of the factory-built structure are the responsibility of the Division of Housing.
- 8.2.3 Fire suppression system construction related to the completion of the factory-built structure and inspections of the fire suppression system are the responsibility of the Division of Housing.
- 8.3 The Division of Housing is not responsible for any annual certification inspections or testing requirements for a factory-built structure after certification.
 - 8.3.1 Any annual certification inspections or testing required for a factory-built structure after certification by the Division of Housing are the responsibility of the applicable state agency or local fire authority having jurisdiction.
- 8.4 A state agency may apply as a third-party agency or a participating jurisdiction for installation inspections and oversight inspections for factory-built structures where the state agency has local government authority.

Rule 9. Sellers of Manufactured Homes

Registration

- 9.1 Exceptions:
 - 9.1.1 A Colorado-licensed real estate broker is exempt from the requirement to be a registered seller when selling manufactured homes or tiny homes pursuant to section 24-32-3323(4)(b), C.R.S., if they are acting as a third-party (do not own the manufactured home or land it is installed on) in the transaction and are involved in negotiating the sale or lot rent of the land the manufactured home or tiny home is installed on, in addition to the sale of the manufactured home or tiny home.
 - 9.1.2 A registration as a seller is not required for any transaction involving the sale of a factory-built structure, residential or nonresidential, that is constructed to the International Building Code (IBC) unless the structure is built as a single family home, duplex, or townhouse that requires the construction to the IBC based on the number of structures.
- 9.2 Manufacturers who sell directly to purchasers of one- or two-family dwellings must register as a seller with the Division of Housing and follow all statutory requirements and the requirements of this Rule 9.

- 9.3 As part of the registration process, a seller is required to establish and maintain an escrow account for all manufactured housing or tiny home down payments received from purchasers during the annual registration period if the total amount received prior to the delivery (as defined pursuant to section 24-32-3302(6.5), C.R.S.) of the manufactured homes is greater than \$50,000; they elect to not obtain the coverage identified in Rule 9.4(B); and the money collected is not utilized for purposes of Rule 9.4(C)(2) and (3).
- (A) If unable to establish an escrow account, for purposes of compliance with this rule, a seller may establish a trust account.
 - (B) All money deposited in an escrow or trust account, except for money distributed for purposes of Rule 9.4(C)(2) and (3), must be held in the account until a manufactured home or tiny home is delivered or the sale is terminated, including a complete accounting of all money.
- 9.4 Pursuant to sections 24-32-3301(1)(c)(II) and 24-32-3324(2), C.R.S., a seller is also required to establish and maintain a letter of credit, certificate of deposit issued by a licensed financial institution, or a surety bond issued by an authorized insurer in order to obtain and keep their registration in active status for that year as follows:
- (A) A minimum coverage amount of \$50,000 for their annual registration period to cover all down payments received by the seller from any purchasers prior to the delivery of manufactured or tiny homes during that registration period.
 - (B) If a seller collects more than \$50,000 in down payments from purchasers during their registration period, then the seller must at that point obtain coverage that is equal to or greater than all down payments received by the seller from all purchasers.
 - (C) The following transactions are not subject to the coverage requirements of (B) in this rule:
 - (1) Any down payments that are deposited in a Division of Housing-approved escrow or trust account;
 - (2) Any portion of the down payments distributed within thirty (30) days for specific services that are detailed in the contract between the purchaser and the seller and are clearly invoiced for, or sent to the manufacturer to construct the manufactured home or tiny home; or
 - (3) Any nominal sales promotion amount billed to potential purchasers for the primary purpose of holding a pricing level on the manufactured home or tiny home.

- 9.5 A registration may have more than one location under a parent company in which case they all must be under the same registration and covered by the same letter of credit, certificate of deposit, or surety bond. The business name on the registration and the business name on the letter of credit, certificate of deposit, or surety bond must match.
- 9.6 Once a complete application is received by the Division of Housing, the date of registration issued will be the same as the dates on the letter of credit, certificate of deposit, or surety bond. They should all be dated on the first day of the month.
- 9.7 All letters of credit, certificate of deposits, or surety bonds must include language that the Division of Housing be listed on the financial security device and may be drawn upon by the Division after an enforcement action as described in section 24-32-3324, C.R.S.
- 9.8 Sellers using the services of a building contractor for site preparation or on-site construction activities are responsible for ensuring that the building contractor who supervises site preparation or on-site construction work holds a current license required by the local jurisdiction where the work is being performed or is registered with the Division of Housing, per Rule 6.

Renewal

- 9.9 A registration is active for one year from the date of issuance and a registered seller will be notified a reminder to renew thirty (30) calendar days in advance of the expiration date of their registration.
- 9.10 A new application, new letter of credit, certificate of deposit, or surety bond is required to be submitted for the renewed year.
- 9.11 A registration will remain active if a complete application is submitted to the Division of Housing by the registration expiration date.

Sales Contract

- 9.12 In addition to the requirements provided in section 24-32-3325, C.R.S., a seller:
- (A) Is not required to return any portion of down payment(s) made prior to the delivery of the manufactured home if that money was used for specific services detailed in the contract or sent to the manufacturer to cover its construction costs if this is clearly provided in the executed sales contract between seller and purchaser.
 - (B) May collect additional amounts from a purchaser if the purchaser cancels an approved order if deposits were sent to the factory that are not adequate to cover purchased materials and expenses associated with pre-construction activity for the manufacturer and seller if clearly outlined in the contract.

- 9.13 For a period of three (3) years, a seller is required to retain true copies of all sales contracts, down payment receipts, depository receipts, evidence of delivery documents, and evidence the sale was finalized or terminated.
- 9.14 A seller is required to inform the buyer of a manufactured home or a tiny home, to be installed on a permanent or temporary foundation in an area of the state without a local building department, that the foundation must be designed by a Colorado-licensed design professional. Plans are to be submitted to the Division of Housing for review and approval, and construction is to be inspected and approved by the Division. This notification may be inserted in the contract, or as an attachment or amendment to the contract, or separate from the contract as long as the homeowner signature is obtained.

Audits

- 9.15 Audits for sellers are conducted, per procedures established by the Division of Housing for administrative compliance, based on the requirements outlined in section 24-32-3325, C.R.S., and in Rules 9.3 and 9.4.
- 9.16 The annual audit may include, but is not limited to, a review of customer contracts from the previous year and financial records related to customer deposits and funds transfers.
- 9.17 Sellers found to have corrective actions as a result of an audit or investigation will have thirty (30) calendar days to become compliant. Failure to implement corrective action(s) within this timeframe will result in a financial penalty of \$250. Failure to comply within sixty (60) calendar days will result in a suspension or revocation of registration.

Rule 10. Installations and Inspections of Manufactured Homes and Tiny Homes

- 10.1 Every manufactured home, as defined by section 24-32-3302(20), C.R.S., to include a “multi-family structure” as defined in Rule 1.26, or a tiny home as defined by section 24-32-3302(35), C.R.S., that is installed at a temporary or permanent location and is designed and commonly used for occupancy by persons for residential purposes, must display a certificate of installation (insignia) issued by the Division of Housing or an authorized party, certifying that it is installed in compliance with the manufacturer’s instructions or the Manufactured Housing Installation Standards adopted by the Division in rules 2.21 through 2.24.
- 10.1.1 Temporary installations for the purpose of home display prior to use as a residence which will be relocated to another location are exempted from these rules provided these installations are for display use only with no type of occupancy.

- 10.1.2 Except where specifically excluded from Rule 10, all installation standards apply to manufactured homes and tiny homes.
- 10.2 Prior to beginning the installation of a manufactured home or tiny home, an installing owner (authorized to install their own home subject to the requirements and limitations of section 24-32-3315(1)(c), C.R.S.) or registered installer who is installing a manufactured home or tiny home must submit a complete and accurate application for an Installation Authorization issued by the Division of Housing or certified installation inspector, unless a participating jurisdiction is inspecting and certifying the installation.
- 10.2.1 Installing owners or registered installers must display an Installation Authorization at the site of the manufactured home or tiny home, located in any jurisdiction outside the authority of a “participating jurisdiction” as defined in Rule 1.31, to be installed until an installation certification is attached to the manufactured home or tiny home certifying that the installation is in compliance with the manufacturer's installation instructions or the installation standards in Rules 2.21 through 2.24 of these rules.
- 10.2.2 Each authorization for installation will contain the identity of the installer or installing owner as well as phone number and contact person and identify the installer as the homeowner, or a registered or certified installer. The certificate will also include the name, address, and telephone number of the individual or agency issuing the Installation Authorization.
- 10.2.3 Installing owners or registered installers installing a home in a jurisdiction where there is not a local building department must install the home on a foundation that has been designed and stamped by a Colorado-licensed design professional and the foundation inspected by the Division of Housing.
- 10.2.4 If an installer cannot complete an installation, the installer or an installer's representative must notify the Division of Housing within five (5) business days with the name of the new qualified installer and request a new Installation Authorization. The new qualified installer becomes the installer of record and must complete the installation, accepting full responsibility for the installation, and any corrections if required.
- 10.3 Installers using the services of a building contractor for site preparation or on-site construction activities are responsible for ensuring that the building contractor who supervises site preparation or on-site construction work holds a current license required by the local jurisdiction where the work is being performed or is registered with the Division of Housing, per Rule 6.

- 10.4 Installers connecting fire suppression components between boxes must follow the manufacturer's instructions for those connections and must sign the CORI in the installation section.
- 10.5 Fire suppression systems installed at an installation site must be installed by a fire suppression system contractor who holds Division of Housing-approved credentials or is registered as a fire suppression system contractor with the Division of Fire Prevention and Control.
 - 10.5.1 If a fire suppression system is started in-plant, but completed at the installation site, the fire suppression system contractor must ensure the CORI has been completed for any remaining inspections and those inspections are completed by a Division of Housing-authorized inspector.
- 10.6 A copy of the manufacturer's instructions must be available at the time of installation and inspection of each new manufactured home or tiny home. The installer is responsible for maintaining a copy of the manufacturer's instructions at the installation site.
 - 10.6.1 Whenever the applicable instructions for the installation of the manufactured home or tiny home are not present at the time of the inspection, the inspector may fail the inspection and require a re-inspection of the installation. All costs of the inspection and any following re-inspection will be borne by the installer.
 - 10.6.2 Where the manufactured home or tiny home is used or is being relocated, the manufacturer's instructions will be used if available. If the manufacturer's instructions are not available, the applicable adopted alternate standard listed in Rules 2.21 through 2.24 of these rules will be used for the installation.
- 10.7 All manufactured homes or tiny homes that are found to be in compliance with installation requirements must have a certification of installation (copper colored 3"x5" insignia for modular, HUD-code, mobile, and tiny homes or gold colored 3"x5" for multi-family) completed and permanently attached by the inspector making the inspection or a certified installer.
 - 10.7.1 A certification of installation must be affixed at the interior electrical panel or under the sink cabinet.
 - 10.7.2 Application of the certification of installation is evidence that permanent utility service may be established.
- 10.8 When a manufactured home or tiny home installation is not found in compliance with the applicable manufacturer's instructions or other applicable instructions or approved plans, the installer or manufacturer must be notified in writing by the inspector.

- 10.8.1 Determination of the responsible party must be to the best of the inspector's knowledge. Documentation must be provided to the inspector for changing a responsible party.
- 10.8.1.1 If the installation was due to an improper installation and not per the manufacturer's instructions, the notice must be sent to the installer for corrections.
- 10.8.1.2 If the installation was not completed correctly due to insufficient documentation from the manufacturer, the installer and inspector should send notice to the manufacturer for information related to the correct installation method.
- (A) Any deviations from the manufacturer's installation manual must have prior approval from the manufacturer or have an installation design stamped by a licensed engineer or architect for that specific home.
- 10.8.1.3 If there is not a manufacturer's installation manual and the Division of Housing installation manual was used, if the installation method is not specifically addressed in the manual, a design stamped by a licensed engineer or architect is required.
- 10.8.2 The inspector may, at the time of the inspection, include in the inspection report instructions for the installer to call for re-inspection at any stage to prevent cover up of any part of the installation requiring re-inspection by the inspector.
- 10.9 The installer must pay for any repairs required to bring the installation into compliance. The installer will pay for any subsequent inspections required by the Division of Housing or certified inspector.
- 10.10 If a vacant manufactured home or tiny home fails the installation inspection because of conditions that endanger the health or safety of the occupant, the manufactured home or tiny home cannot be occupied. The unsafe manufactured home or tiny home will be visibly posted with a "Red Tag Notice" to prevent occupancy.
- 10.11 If an installation or subsequent repair of an installation by an installer fails to meet the instructions or standards within the time limit allowed by the inspector, the inspector must notify the installer of the specific violation(s). All installers must correct any installation violations within thirty (30) calendar days of inspection or be subject to the issuance of a "Red Tag Notice".
- 10.12 An installer cannot reduce or eliminate their responsibility to perform an "installation" as defined pursuant to section 24-32-3302(16), C.R.S., including without limitation supporting, blocking, leveling, securing, or anchoring a manufactured home or tiny home on a permanent or temporary foundation

system, and connecting multiple or expandable sections of the home. If an installer engages in site work beyond the installation items listed above, then they are required to be licensed as a building contractor by the local jurisdiction or registered as one by the Division of Housing.

Registration

10.13 Pursuant to sections 24-32-3302(16), 24-32-3302(17), 24-32-3302(31), 24-32-3303(1)(d), 24-32-3304(1)(d), 24-32-3305(1)(c), 24-32-3315, 24-32-3317(3), 24-32-3319, and 24-32-3320, C.R.S., a person or business entity must be actively registered with the Division of Housing before attempting to install a manufactured home or tiny home regardless of whether they are paid for such service, unless exempted from registration requirements pursuant to section 24-32-3315(1)(b) or (c), C.R.S.

10.13.1 Those that are exempted from registration requirements in statute are still required to comply with all provisions of this rule as well as the installation standards provided in Rules 2.21 through 2.24 of these rules.

10.13.2 A business entity may register their business to conduct installations for manufactured homes and tiny homes.

10.13.2.1 A business registering a qualified employee or employees conducting installations as defined in section 24-32-3302(16), C.R.S., and are charged with doing the direct on-site supervision as defined in Rule 1.12, must submit an application with applicable information in Rule 10.14 for each qualified individual and an affidavit from the business owner that the individual registering is a current employee of the business.

10.13.2.2 Letter of credit, surety bond, or certificate of deposit and liability insurance must include the business name for the individual registering.

10.13.2.3 Business accounts created must match the name of the business and business name in the documentation of the items in Rule 10.13.2.2.

10.13.2.4 Business owners or their representative must notify the Division of Housing within thirty (30) calendar days when a registered employee has been terminated or is no longer with the business or if the business ceases to exist.

10.13.2.5 Each installer registered will be marked inactive when any item in Rule 10.13.2.2 expires or if an application to renew has not been submitted prior to the expiration date.

- 10.13.2.6 Education requirements for both registration and renewal must be completed by each qualified registered or certified installer within a registered or certified business entity.
- 10.13.2.7 A registered business entity must assign a qualified individual's name to be included on the Installation Authorization. If a registered business entity assigns a new qualified individual to an installation, then they must notify the Division of Housing within five (5) business days.
- 10.13.3 Installations shall not occur after the expiration of any of the following: letter of credit, surety bond, certificate of deposit, liability insurance, or Division of Housing registration.
 - 10.13.3.1 Installations by the registered installer may continue beyond expiration only if a complete renewal application has been submitted to the Division of Housing prior to the expiration and the updated letter of credit, surety bond, or certificate of deposit and liability insurance is current during the time of application review and approval.
- 10.14 In order to be eligible for registration, an application meeting the requirements outlined in sections 24-32-3315(2), (3), and (4), C.R.S., must be filed with the Division of Housing, including the following:
 - 10.14.1 Experience; training; education; liability insurance; and letter of credit, certificate of deposit, or bond requirements pursuant to sections 24-32-3315(2), 24-32-3315(4)(b), 24-32-3315(4)(b.5), and 24-32-3315(4)(c), C.R.S., include the following:
 - 10.14.1.1 An individual applying to be a registered installer for manufactured homes and tiny homes as adopted by the State Housing Board must meet the following requirements in addition to what is provided in section 24-32-3315(4), C.R.S.:
 - (A) 12-months of installation experience under direct supervision of a registered or certified installer, which includes a minimum of 1,800 hours of experience installing at least five (5) manufactured homes or tiny homes, including supporting, blocking, leveling, securing, anchoring, and connecting multiple or expandable sections of the home.
 - OR
 - (B) 3,600 hours of experience in the construction of manufactured homes or tiny homes;

- (C) 3,600 hours of experience as a building construction supervisor;
- (D) 1,800 hours as an active manufactured home or tiny home installation inspector;
- (E) Completion of one year of a college program in a construction-related field; or
- (F) Any combination of experience or education from paragraphs (B) through (E) of this rule that totals 3,600 hours;

OR

- (G) Residential Contractor Class C for the installation of residential buildings regulated by the International Residential Code (IRC), limited to the height of not greater than three stories above grade and to include buildings listed in Section 101.2 of the IRC; or
- (H) Certified or licensed to perform manufactured home installations in a state with a qualifying installation program if that state's requirements are substantially equivalent to Colorado's.

AND

- (I) Eight (8) hours of Division of Housing-approved installation education: four (4) of the hours must consist of training on manufactured home installation standards which may include tiny home installation standards, and the other four (4) hours on the Division's Manufactured Housing Installation Program.

AND

- (J) General liability insurance coverage with a minimum of \$1,000,000 per occurrence.

AND

- (K) A letter of credit, certificate of deposit issued by a licensed financial institution, or surety bond issued by an authorized insurer for \$15,000 and is payable to the Division of Housing upon execution of an enforcement action. The bond requirement is specific to multi-family townhomes built to the IRC.

10.14.1.2 An individual applying to be a registered installer of multi-family structures as defined by Rule 1.26 must meet the following requirements in addition to what is provided in section 24-32-3315(4), C.R.S.:

- (A) 12-months of installation experience under direct supervision of a registered or certified installer, which includes a minimum of 1,800 hours of experience installing multi-family structures, including supporting, blocking, leveling, securing, anchoring, and connecting multiple or expandable sections of the structure.

OR

- (B) Building Contractor B for the installation of commercial buildings regulated by the International Building Code (IBC), not considered high rise;
- (C) Building Contractor A for the installation of commercial buildings regulated by the International Building Code (IBC), considered high rise; or
- (D) Colorado-licensed design professional who has prior experience in the design and construction of multi-family structures.

AND

- (E) Eight (8) hours of Division of Housing-approved installation education: four (4) of the hours must consist of training on the installation of multi-family structures and the other four (4) hours on the Division's Manufactured Housing Installation Program.

AND

- (F) General liability insurance coverage with a minimum of \$1,000,000 per occurrence.

AND

- (G) A letter of credit, certificate of deposit issued by a licensed financial institution, or surety bond issued by an authorized insurer for \$15,000 and is payable to the Division of Housing upon execution of an enforcement action. The bond requirement is specific to multi-family townhomes built to the IRC.

Certification

10.15 Pursuant to sections 24-32-3302(4), 24-32-3315(7)(a), and 24-32-3317(2), C.R.S., a registered installer may apply to the Division of Housing for certification under one of the three following classifications or all three if qualified to do so:

10.15.1 Class IRC – Modular and tiny home only. Submit evidence of five (5) Division-approved installations of modular homes and tiny homes built to the building codes adopted by the State Housing Board, completed within an 18-month period.

10.15.2 Class HUD – HUD-code and mobile homes only. Submit evidence of five (5) Division-approved installations of manufactured homes built to the “National Manufactured Housing Construction and Safety Standards Act of 1974”, 42 U.S.C. sec. 5401 et seq., and any standard promulgated by the Secretary of the U.S. Department of Housing and Urban Development (HUD) pursuant to the federal act; completed within an 18-month period.

10.15.3 Class IBC – Multi-family structures. Submit evidence of fifteen (15) Division-approved installations of multi-family dwelling units, but no less than two (2) multi-family buildings, built to the building codes adopted by the State Housing Board, completed within an 18-month period.

10.16 Evidence of installation must include copies of all inspection reports for each installation issued by the Division of Housing or a certified installation inspector. If in the judgment of the Division, such installer demonstrates the ability to successfully complete installations of manufactured homes, tiny homes, or multi-family structures in accordance with the requirements of the specific classification they have applied, a certification inspection will be scheduled. Certification will be granted at that classification if the installation is approved.

10.16.1 If the review of the evidence of the installations does not clearly demonstrate the ability to successfully complete installations in compliance with the requirements, the Division of Housing may require additional installations to be performed, reviewed, and accepted prior to scheduling a certification inspection.

10.16.2 A registered business entity installer pursuing certification must provide evidence that all individual installers registered with the business meet the requirements in Rule 10.14 and successfully complete the certification inspection in Rule 10.15.

10.16.2.1 Once the business entity is certified, it may register a new qualified installer with the business entity and maintain certification status as long as the newly registered person completes their certification within eighteen (18) months from the date they successfully register with the Division of Housing.

10.16.2.2 A registered qualified installer employed by a certified business entity will be required to have their installations inspected by the Division of Housing or one of its approved installation inspectors until that individual is certified.

10.17 A certified installer is authorized by section 24-32-3317(2.3), C.R.S., to independently certify the installation by affixing a certificate of installation (insignia) authorized by the Division of Housing after the installation is completed in compliance with all requirements in any county or municipality that is not covered by a participating jurisdiction. Pursuant to section 24-32-3317(2.5), C.R.S., a participating jurisdiction authorizes, inspects, and certifies all installations occurring within its jurisdiction, even those to be performed by a certified installer.

10.17.1 Before the installation begins, the certified installer must report the installation to the Division of Housing.

10.17.2 The certified installer must affix the installation insignia to the structure after certifying that the structure is in compliance with the Division-approved installation standards.

10.17.3 Installations performed by a certified installer do not require an inspection by the Division of Housing or a certified inspector. However, pursuant to sections 24-32-3317(2.9) and 24-3317(6), C.R.S., one of the parties identified may request the Division to inspect an installation performed by a certified installer.

Renewal

10.18 A registered installer is required to timely renew their registration once a year and in compliance with the requirements of section 24-32-3315, C.R.S., in order to continue performing installations in the state of Colorado.

10.18.1 A renewal application filed with the Division of Housing must include evidence of completing four (4) hours of approved continuing education in compliance with the education requirements detailed in Rules 10.21 through 10.25.

10.19 A certified installer must timely and completely renew their registration with the Division of Housing as required above in Rule 10.18 in order to maintain their certification. A certification will automatically expire if a registration is not successfully renewed.

10.20 A registration will remain active if a complete application is submitted to the Division of Housing by the registration expiration date.

Continuing Education

- 10.21 The Division of Housing will review all educational courses submitted and will grant course approval in writing. The Division may audit courses and may request from each entity offering a Division-approved course, all instructional material and attendance records as may be necessary for an investigation. Failure to comply may result in the withdrawal of Division approval of the course.
- 10.22 All continuing education courses must contain at the minimum the following instructional material:
- (A) Blueprint reading and comprehension.
 - (B) Discussion of structural issues. For example: hinged roofs, cape cod roofs, marriage line fastening and support, foundation sizing, etc.
 - (C) A review of Colorado law, rules and/or policies as they pertain to the technical issues being discussed at the training.
- 10.23 All continuing education courses may be offered and completed by distance learning.
- 10.24 The following course format and administrative requirements apply to all Colorado continuing installation education for installers and inspectors:
- (A) Courses must be at least one hour in length and contain at least 50 instructional minutes per course hour.
 - (B) A maximum of eight-hours of credit may be earned per day.
 - (C) No course may be repeated for credit in the same registration period.
 - (D) Instructors may receive credit for classroom teaching hours once per course taught per year.
 - (E) A volunteer member of the State Housing Board's Technical Advisory Committee (TAC) may receive credit for participating in the process of recommending rule amendments/adoptions once per year.
 - (F) Hours in excess of the required amount may not be carried forward to satisfy a subsequent renewal requirement.
 - (G) No school/provider may waive, excuse completion of, or award partial credit for the full number of course hours.
- 10.25 Each Colorado installer or inspector is responsible for securing from the provider evidence of course completion in the form of an affidavit or certificate of attendance. Documentation must be in sufficient detail to show the name of the

licensee, course subject, content, duration, date(s), and contain the authentication of the provider.

10.25.1 For distance learning an affidavit of completion signed under penalty of perjury is the only acceptable proof.

10.25.2 In person courses may have a certificate signed by the instructor at the end of the course.

10.25.3 Installers and inspectors must retain proof of continuing education completion for three years and provide said proof to the Division of Housing upon request.

10.26 Each approved education provider must retain copies of course outlines or syllabi and complete attendance records for a period of three years.

10.27 Continuing education providers must submit an application form along with the following information at least 30 days prior to the proposed class dates:

(A) Detailed course outline or syllabus, including the intended learning outcomes, the course objectives, and the approximate time allocated for each topic.

(B) A copy of the course exam(s) and instructor answer sheet if applicable. In the absence of an exam, the criteria used in evaluating a person's successful completion of the course objectives.

(C) Copy of instructor teaching credential; if none, a resume showing education and experience which evidence the mastery of the material to be presented.

(D) A copy of advertising or promotional material used to announce the offering.

(E) Upon Division of Housing request, a copy of textbook, manual, audio, videotapes, or other instructional materials.

10.28 By offering installation continuing education in Colorado, each provider agrees to comply with relevant statutes and rules and to permit the Division of Housing to audit courses at any time and at no cost.

Inspectors

10.29 The Division of Housing may authorize independent contractors to perform installation inspections and enforcement of proper installation of manufactured homes, including multi-family structures, and tiny homes.

10.30 Pursuant to section 24-32-3317(8), C.R.S., the Division of Housing establishes the following qualifications and area of expertise necessary for inspecting manufactured homes and tiny homes as acceptable in addition to the qualifications and requirements already listed in the statute:

- (A) Class IRC and HUD - when inspecting the installation of mobile, manufactured HUD-code homes, or IRC modular homes or tiny homes:
 - (1) Colorado-licensed design professional who specializes in the field they are inspecting;
 - (2) Local housing inspector – a manufactured home or tiny home or residential building inspector employed by the local authority having jurisdiction over the site of the home, provided it is a participating jurisdiction;
 - (3) International Code Council certified inspector;
 - (4) Previously a Colorado certified installer; or
 - (5) Class C contractor license for the installation of residential buildings regulated by the codes and standards of the IRC, limited to the height of not greater than three stories above grade and buildings classified R-2, R-3, and R-4 in section 101.2 of the IRC; and
 - (6) Eight (8) hours of Division of Housing-approved installation education: four (4) of the hours must consist of installation training on manufactured homes and tiny homes; and four (4) hours on the Division's Manufactured Housing Installation Program.

OR

- (B) Class IBC - when inspecting the installation of multi-family structures:
 - (1) Colorado-licensed design professional who specializes in the field they are inspecting;
 - (2) Local housing inspector – a commercial or combination building inspector employed by the local authority having jurisdiction over the site of the home, provided it is a participating jurisdiction;
 - (3) International Code Council certified commercial combination inspector;
 - (4) A Division of Housing-authorized third-party inspection agency;

- (5) Class B Commercial Building Contractor License for the installation of commercial buildings regulated by the code and standards of the IBC not considered high rise construction; or
- (6) Class A Commercial Building Contractor License for the installation of commercial buildings regulated by the code and standards of the IBC considered high rise construction; and
- (7) Twelve (12) hours of Division of Housing-approved installation education: eight (8) of the hours must consist of training on multi-family structure installation standards and four (4) hours on the Division's Manufactured Housing Installation Program.

10.31 The Division of Housing may revoke the certification of any inspector who fails to maintain the minimum requirements for the certification, has a conflict of interest impairing their ability to make impartial inspections, or if investigation of complaints by the Division reveals that the inspector has repeatedly failed to enforce the requirements of these rules.

10.32 A certified inspector may not perform inspections where the inspector has a conflict of interest that may impair their ability to make fair and impartial inspections.

10.33 A certified inspector is required to renew their certification annually.

10.33.1 A renewal application filed with the Division of Housing must include evidence of completing four (4) hours of approved continuing education annually in compliance with the education requirements listed further up in these rules.

10.33.2 A certification will remain active if a complete application is submitted to the Division of Housing by the certification expiration date.

10.34 Where a local jurisdiction has established a building department, the building official or other approved authority may make a written request to be the exclusive independent installation inspection agency within their legal boundaries as a "participating jurisdiction".

10.34.1 When granted by the Division of Housing, all manufactured home or tiny home installation inspections in that area will be made by that participating jurisdiction's certified installation inspectors or by a certified installation inspector approved by the jurisdiction.

10.34.2 Division of Housing inspectors or Division-designated independent inspectors may perform inspections within the participating jurisdiction in response to a complaint.

10.35 Audits for independent inspectors will take place annually to maintain certification. Audits will focus on requirements for maintaining certification, including, but not limited to, compliance with reporting all installations and insignias issued by the Division of Housing.

Installation of Tiny Homes

10.36 Tiny homes installed temporarily will not receive an installation insignia if the tiny home will be located at the temporary installation site for less than 180 days. Installations that are less than 180 calendar days will receive a Temporary Installation Certificate which will include the structure information, the installer, and inspector, with an end date of when the temporary approval for the installation expires. Tiny homes placed on a temporary foundation for longer than 180 days will receive an installation insignia.

10.36.1 An extension may be requested in writing to the Division of Housing for up to 180 calendar days. No other extension may be granted after and an installation insignia will be required for the installation.

10.37 Installations in RV parks, or for camping that are intended for recreational use, do not require installation inspections and must follow the installation manual for park model installation procedures.

10.38 Installations longer than 180 calendar days, after an approved extension, or a permanent installation at a location, will require an inspection by one of the following:

- A Division of Housing inspector,
- Certified independent contractor,
- Certified Installer, or
- Participating Jurisdiction

10.39 Tiny Homes that are intended for temporary use still need to follow the guidelines in Rules 10.36 through 10.38.

10.40 Tiny homes that are intended to be relocated and not intended for long term use at one location, and not permanently installed, are considered temporary structures

10.41 Tiny homes that are being stored, not intended to be occupied for other than maintenance purposes, do not need to be inspected for installation, but should follow proper supporting and tie down procedures for storage, per the installation instructions

Audits

10.42 Audits for installers and inspectors may include, but are not limited to:

- (A) Documentation, reporting, and recordkeeping for installations and inspections completed and insignias issued, including homeowner contracts and installation authorizations.
- (B) Financial surety, as required by law in section 24-32-3315, C.R.S., including bond and insurance coverage.

10.43 Registered and certified installers are audited per procedures detailed in the Division of Housing's Audit Handbook.

10.44 Installers or inspectors found to have corrective actions as a result of an audit or investigation will have thirty (30) calendar days to become compliant. Failure to implement corrective action(s) within this timeframe will result in a financial penalty of \$250. Failure to comply within sixty (60) calendar days will result in a suspension or revocation of registration.

Rule 11. Foundations

11 The Division of Housing has direct oversight of the construction, design and inspection of foundations for factory-built structures; and all hotels, motels, and multi-family structures in jurisdictions without building departments.

Foundation Design Review

11.1 Prior to the construction of any foundation system in jurisdictions without a building department, plan approval must be obtained by the Division of Housing.

11.1.1 Plans must be designed and stamped by a registered architect or engineer and must include the following documentation:

- (A) Signed copy of a Division of Housing Foundation checklist,
- (B) Index of documents attached,
- (C) Location of the installation site,
- (D) Soils test report, Geotechnical Evaluation, or assumed soils condition based on-site assessment from the engineer or architect,
- (E) Frost depth: from local data or calculated method using air freezing index,
- (F) Code analysis of code design criteria,

- (G) Stamped foundation system with supporting data that meet or exceed the local conditions,
 - Applicable foundation design criteria that is specific to the site location or meet Division of Housing minimum requirements per, Rule 11 of these rules, whichever is more restrictive.
- (H) Site plan, with minimum setback distances to lot lines or other structures as applicable,
- (I) Designate as a permanent or temporary foundation per Rules 1.32 and 1.43,
- (J) If applicable, interface details for structures with a chassis,
- (K) Denote if special inspections are required, and
- (L) Identify if the location is a flood hazard area.

OR

11.1.2 Foundation designs approved by a Colorado-licensed design professional with the structure's installation manual. Must include the following:

- (A) All pages are stamped by the Colorado-licensed design professional,
- (B) Location of the installation site,
- (C) Soils test report, Geotechnical Evaluation, or assumed soils condition based on-site assessment from the engineer or architect,
- (D) Frost depth: from local data or calculated method using air freezing index,
- (E) Code analysis of code design criteria,
- (F) Stamped foundation system with supporting data that meet or exceed the local conditions,
 - Applicable foundation design criteria that is specific to the site location or meet Division of Housing minimum requirements per Rule 11 of these rules, whichever is more restrictive.
- (G) Site plan, with minimum setback distances to lot lines or other structures as applicable,
- (H) Designate as a permanent or temporary foundation per Rules 1.30 and 1.41,

- (I) If applicable, interface details for structures with a chassis,
- (J) Denote if special inspections are required, and
- (K) Identify if the location is a flood hazard area.

11.1.3 Any deviations from approved plans require plans to be resubmitted for review and approval. Plans must be restamped by the Colorado-licensed design professional.

11.1.4 Any deviation from the installation manual must have prior approval from the manufacturer or a new design may be stamped by a Colorado-licensed design professional.

11.2 The Division of Housing may send plans for review to a third-party agency contracted by the Division for special cases or expediency.

Inspections

11.3 All aspects of foundation construction and design listed below must be inspected and passed for compliance prior to concealment of any component by a Division of Housing Inspector, authorized third-party agency, or Colorado-licensed design professional.

- (A) Open Hole Inspection
- (B) Footings
- (C) Ufer/Concrete Encased Electrode
- (D) Stem Wall
- (E) Perimeter Drain (if required)
- (F) Damp Proofing
- (G) Foundation Void

11.4 If inspections are conducted by an authorized third-party agency or Colorado-licensed design professional, an inspection letter must be submitted at the conclusion of the foundation construction. An inspection letter must clearly denote that all required inspection items listed in Rule 11.1 have been completed and compliant with approved design and adopted codes in these rules.

11.5 Any deviation or discrepancies found during an inspection must be reported to the Division of Housing and the engineer on record. Changes to design based on findings require revisions to the approved plan to be submitted to the Division for approval.

Rule 12. Enforcement

- 12.1 The Division of Housing may deny, suspend, fine, or revoke a registration, certification, or authorization after notice and hearing pursuant to sections 24-4-104 and 24-4-105, C.R.S., whenever a violation of any provision of these regulations or statutes occurs, or when a registration, certification, or authorization is issued on the basis of incorrect information supplied by the applicant.
- 12.1.1 A person or entity with a registration, certification, or authorization that is revoked may not apply for a new registration, certification, or authorization until at least one (1) year has passed from the date it went into effect and must comply with any remediation requirements imposed by the Division of Housing.
- 12.1.2 The Division of Housing may, in its discretion, seek the summary suspension of a registration, certification, or authorization under section 24-4-104(4)(a), C.R.S., if the Division concludes that the registered, certified, or authorized entity or individual has committed deliberate and willful violations of Colorado law or if the public health, safety, or welfare imperatively requires emergency action.
- 12.2 A certified inspector that knows of an installation that is in default and has not been corrected by subsequent repair must request that the Division of Housing investigate the installation. The Division may deny, suspend, fine, revoke, or refuse to renew the registration of the installer and cause the forfeiture of the installer's surety bond on behalf of the owner of the manufactured home or tiny home for failing to comply with the Division's standards regarding installation of a manufactured home or tiny home.
- 12.3 The Division of Housing may investigate complaints filed against manufacturers, third-party agencies, inspectors, building contractors, sellers, or installers as necessary to enforce and administer these regulations. The Division may also open an investigation as needed without a complaint.
- 12.3.1 If a construction inspection, investigation, or audit of a factory-built structure finds results or items that need correction, a correction notice will be issued.
- 12.3.1.1 Correction notice recipients have ten (10) calendar days to respond to the correction notice and thirty (30) calendar days to make corrections.
- 12.3.2 If the result of a plan review, screening, or audit indicates non-compliance with the Administrative Rules or submittal procedures, a deviation report will be issued.

- 12.3.3 If a registered, certified, or authorized party has violated these rules, failed to resolve a correction notice or a deviation report, or has otherwise not complied with requirements in section 24-32-3301 et. seq., C.R.S., the Division of Housing may issue a corrective action letter which may include a fine, suspension of registration, certification, authorization; denial of re-registration, re-certification, or re-authorization; or revocation of registration, certification, or authorization. Correction notices and corrective actions must be approved and closed out by the Division prior to placement of any insignia.
- 12.4 The Division of Housing may designate a certified inspector to perform inspections on behalf of the Division to aid in the investigation of consumer complaints.
- 12.5 In the event the Division of Housing receives funds from the forfeiture of a letter of credit, certificate of deposit, or surety bond, pursuant to (i) section 24-32-3311(1)(1.3)(II), C.R.S., section 24-32-3315(2), C.R.S., or (ii) section 24-32-3324(2), C.R.S., and Rules 4.6.2, 9.7, and 10.14, the Division shall distribute those funds to the individual entitled to the funds pursuant to those statutes. If more than one person is eligible to make a claim, then the Division of Housing is required to pro rate the total amount of the letter of credit, certificate of deposit, or surety bond among all known claimants using the following formula:
- Take the eligible amount paid by each verified claimant and divide it by the total dollar amount of eligible payments received by the registered installer or seller from all verified claimants, and multiply it by the amount recovered from the letter of credit, certificate of deposit, or surety bond to get the specific amount the claimant will receive of the total amount available to all claimants.
- 12.6 Failure to comply with federal manufactured housing regulations may subject the party in question to civil penalties in accordance 24 CFR §§ 3282.10 and 3282.302(b)(3), as adjusted by the Federal Civil Penalties Inflation Adjustment Act.

APPENDIX A: Regional Design Criteria Table

(Does not apply to HUD-code homes, or site-built hotels, motels, and multi-family structures in areas of the state that do not have a building department.)

The Regional Design Criteria Table below describes minimum design criteria for five (5) snow load regions and five (5) wind speed regions. Structures can be designed to meet any snow load region and any wind speed region. Architects and designers can mix and match snow load and wind speed regions to design structures to fit in Colorado's varied geography and climates. In other words, a structure does not have to be designed to Snow Region-2 *and* Wind Region-2; a structure could be designed for Snow Region-1 and Wind Region-3). Other minimum design criteria for structures in all regions are also included. Exceptions are noted in footnotes. Verify that site data is equal to, or less

than, values in the table. Refer to Division of Housing document, *Regional Table User Guide*, for additional information.

Colorado Regional Design Criteria ^A				
Snow Region	Strength-Based Flat Roof Snow Load, Pf, (psf) of:	Strength-Based Ground Snow Load, Pg, (psf) ^{B,C}		
		Thermal Factor, (Ct), 1.20		
		Exposure Factor, (Ce) ^D		
		Full, 0.9	Partial, 1	Sheltered, 1.2
		Model A	Model B	Model C
SR-1	30	40	36	30
SR-2	40	53	48	40
SR-3	60	80	72	60
SR-4	80	106	96	80
SR-5	100	133	120	100
SSD	Site-Specific Design			

Colorado Regional Design Criteria ^A					
Wind Region	Wind Speed, V (mph) (Risk Category II, Exposure C) ^E				
WR-1	WR-2	WR-3	WR-4	WR-5	SSD

115	125	140	150	165	Site-Specific Design
-----	-----	-----	-----	-----	----------------------

Other Design Criteria Minimums for All Regions^F	
Minimum	Requirements for all IRC/IBC structures
Seismic	B
Termite Damage	Moderate to Heavy
Wildfire	Minimum Class 1 ^G
Weathering	Severe
Ice Barrier	Yes
Flood Hazard	Per Local
Air Freezing Index	Per Local
Radon	IRC Appendix AF ^{H,I}
Mean Annual Temp	Per Local
Outdoor Heating and Cooling Temperatures	Per Local
Minimum	Requirement for IRC Structures Only
ADU Fire Separation	IRC Section R302.1 ^J
Thermal	Climate Zone 7 ^K
Fire Suppression	If required by local ^L
Minimum	Requirement for IBC Structures Only
Thermal	Climate Zone 6
Fire Suppression	If required by local ^M

Footnotes:

^A Refer to Division of Housing guidance, Regional Table User Guide, for additional information.

^B The strength-based ground snow loads for each region are using the ASCE 7-22 flat roof snow load equation to calculate the equivalent flat roof snow load using exposure and thermal factors within the table, with no allowed reduction for slope on regional models. Regional models must still also account for other typical roof loads imposed on the structure per Chapter 7 of the ASCE 7-22. Site-specific models are allowed to use reduction for slope along with other typical roof snow load calculations from Chapter 7 of the ASCE 7-22 to determine snow loads. The table only indicates the minimum strength-based ground snow load (Pg) and its calculated flat roof snow load (Pf) using set exposure and thermal factors in the table.

^C When the calculated strength-based roof snow load is above 57 psf, decks, external balconies, fire escapes, and other walking surfaces must be designed to consider the maximum flat roof snow load or the design live load. Snow loads are for structures in Risk Category II areas.

^D Determine exposure based on footnotes to ASCE 7-22 Table 7.3-1 Exposure Factor, Ce. If site information is not known, plans must indicate limitations of structure to obstructions, per the Table.

^E Structures that need to be designed for Risk Category III and IV, or for Exposures other than Exposure C, or in Tornado Regions indicated in ASCE 7-22 wind areas, must use the ASCE standards or equivalent for specific wind speeds.

^F The table represents minimum design criteria that a structure must meet when designing regional structures.

^G May be exempt if the Colorado Wildfire Resiliency Code Map, or locally amended map approved by the Colorado Wildfire Resiliency Code Board, classifies the location where the structure will be installed with no hazard.

^H Structures may be designed with radon mitigation through structure or, alternatively, with exterior routing for active or passive venting for future installation when installed on-site. Plans must include penetration details if radon mitigation is designed to penetrate through the modular system, and follow sections related to materials, installation, and testing when routed through structure.

^I If a local jurisdiction requires radon mitigation for IBC structures, footnote H applies for those structures.

^J May be exempt if the local authority having jurisdiction does not require fire separation for accessory dwelling units (ADUs).

^K Residential structures built to the IRC may be exempt from climate zone 7 thermal envelope requirements if the structure will be installed in a jurisdiction in climate zone 4.

^L Where a fire suppression system is required by the local authority having jurisdiction, the system shall be designed and installed to a minimum of a National Fire Protection Association (NFPA) 13D fire suppression system.

^M The fire suppression system designer must take into consideration applicable sections from IFC Chapter 5, in addition to IFC Chapter 9 when designing fire suppression systems for IBC structures.

Resolutions 10, 34, 35, 36, and 38 repealed and replaced with this new rule, adopted on May 8, 2018, and effective July 1, 2018.

Rule 1.23 was created; Rules 1.24 and 1.25 were renumbered; Rules 2.1 and 2.1.1.1 were amended; Rules 2.2, 2.2.1, and 2.2.2 were amended; Rules 2.2.25, 2.2.26, and 2.2.27 were created; Rule 2.4 was amended; Rules 2.5 and 2.5.2 were amended; Rule 2.6 was amended; Rules 2.7.1, 2.7.4, and 2.7.7 were amended; Rule 4.1 was amended; Rule 4.21 was amended; Rule 4.23 was amended; and Rule 4.24 was amended. These changes were adopted on October 8, 2019, and are effective November 30, 2019.

Rule 7.3 was amended; Rule 7.5 was repealed and subsequent rules renumbered, and Rule 7.7 was created. These changes were adopted on July 14, 2020, and are effective September 14, 2020.

Rules 1.13, 7.1, and 7.2 were deleted. Rules 1.6, 1.9, 2.5.3., 5.8, 5.9, 6.11.1, 6.12.3, 6.15.1, 6.26(B), and 6.29.1 are new. Rules 1.6, 1.7, 1.8, 1.9, 1.10, 1.11, 1.11.1, 1.11.2, 1.12, 1.14, 1.15, 1.16, 1.17, 1.18, 1.19, 1.20, 1.21, 1.22, 1.23, 1.24, 1.25, 1.26, 1.26.1, 1.26.2, 7.3, 7.4, 7.5, 7.6, and 7.7 were re-numbered. Rules 1.1, 1.4, 1.5.2, 1.9, 1.12.1, 1.15, 1.17, 1.18, 1.21, 1.25, 1.26.2(C), 2, 2.1.1.1, 2.5, 2.12, 3.1.3, 3.7, 4.1, 4.14, 4.15.1, 5, 5.1, 5.1.1, 5.1.2, 5.2, 5.3, 5.3(A), 5.3(B), 5.3(C), 5.4, 5.6, 6.1, 6.2, 6.2.1, 6.2.2, 6.3, 6.3.2, 6.5, 6.9, 6.10, 6.10.1, 6.11, 6.12, 6.12.1, 6.12.2, 6.13, 6.14, 6.14.1, 6.14.2, 6.15, 6.16, 6.26(A), 6.27, 6.28, 6.29, 7.1, 7.1.1, 7.1.2, and 7.5 were amended. These changes were adopted on July 13, 2021, and are effective August 30, 2021.

Title and subtitles changed to incorporate HB22-1242 modifications. Deleted Rules 2.5.1.1.(A). 7.7.2 Added Rules 1.4, 1.11, 1.19, 1.26, 1.31, 1.32, 1.33, 2.2.13, 3.1.6, 3.6.2(B), 3.6.2(C), 3.6.5(C), 3.6.5(D), 4.5, 4.5.1, 4.5.2, 4.5.2(1), 4.5.2(2), 4.6, 4.12.1, 4.12.2, 4.12.3, 4.12.4, 4.12.5, 4.12.6, 4.12.6.1, 4.15.1, 4.15.2, 4.15.3, 4.17.3, 4.17.4, 4.17.5, 4.24, 4.25, 4.27.5, 4.27.6, 5.2, 5.7, 5.12, 5.12.1, 6.1.2, 6.2.3, 7.1.2. Amended Rules: 1.2, 1.6.2, 1.6.3, 1.8, 1.10, 1.13, 1.13.1, 1.13.2, 1.15, 1.18, 1.20, 1.22, 1.27, 1.29, 2.1.9, 2.2.1, 2.2.11, 2.2.12, 2.2.17, 2.2.27, 2.12, 2.13.1.1, 2.14.1, 2.14.2, 2.14.2.1.1, 2.14.2.2, 3.1, 3.85, 4.2, 4.7, 4.8, 4.9, 4.10, 4.11, 4.12, 4.13, 4.14, 4.14.1, 4.15, 4.16, 4.17.1.1, 4.17.2, 4.21, 4.22, 4.26, 4.26.1.1, 4.26.1.2, 4.26.1.3, 4.27.2, 4.27.3, 4.28, 4.32.1, 4.32.3, 4.32.4, 4.32.5, 4.32.8, 4.32.9, 5.1.1, 5.3, 5.4, 5.10, 6.1, 6.2, 6.2.1, 6.3, 6.3.1, 6.3.2, 6.4, 6.6, 6.7, 6.10, 6.11.1.1, 6.11.1.2, 6.12.1, 6.13, 6.25, 6.26, 6.30.1, 7.2,

7.5. The following rules were renumbered 1.4, 1.5, 1.6, 1.6.1, 1.8, 1.12, 1.13, 1.15, 1.20, 1.24, 1.26, 1.26.1, 1.26.2(A), 1.26.2(B), 1.25.2(C), 2.2.13, 2.2.14, 2.2.15, 2.2.16, 2.2.17, 2.2.18, 2.2.19, 2.2.20, 2.2.21, 2.2.22, 2.2.23, 2.2.24, 2.2.25, 2.2.26, 2.2.27C4.11.2, 4.14, 4.14.1, 4.15, 4.16, 4.16.1, 4.16.1.1, 4.17, 4.19.1, 4.20, 4.21.1, 4.21.3.1, 4.21.2.1, 4.21.2.2, 4.21.2.3, 4.21.2.3, 4.21.2.4, 4.21.3.1, 4.21.4, 4.22.1, 4.22.2, 4.22.3, 4.22.4, 4.22.4.1, 4.22.5, 4.23, 4.24, 4.24.1, 4.24.2, 4.24.3, 4.24.3.1, 4.25, 4.26, 4.27, 4.27.2, 4.27.6, 4.27.7, 4.27.10, 4.27.11, 4.27.11.1, 4.27.11.2, 5.4, 5.5, 5.6, 5.7, 5.9. These changes were adopted on 5/9/2023 and are effective 7/1/2023.

Emergency rulemaking to allow modification of building codes and standards for emergencies declared by a local jurisdiction. Added: Rule 2.15.3. This change was adopted on October 24, 2023, and is effective on October 24, 2023.

Permanent rulemaking to allow modification of building codes and standards for emergencies declared by a local jurisdiction. Added: Rule 2.15.3. This change was adopted on February 13, 2024, and is effective on April 15, 2024.

Rules updated to implement House Bill 24-1152. Rule 7 (Enforcement) was moved in its entirety to new Rule 8 and renumbered accordingly. Added Rules: 1.6, 1.19, 1.28, 1.33, 1.34, 2.5.1, 2.5.2, 2.15, 2.16, 2.17, 2.18, 2.19, 3.3.2, 3.9, 4.1.3, 4.1.3.1, 4.1.4, 4.17.4.1, 4.27.2.5, 4.33.8(O), 6.5.1.1, 6.5.1.2, 6.5.1.3, 6.31, 6.31.1, 6.32 through 6.36, Rule 7 (Foundations). Deleted Rules: 2.1.7, 2.2.8, 2.2.10, 2.2.27 (b through m), 2.7.1 through 2.7.6. Amended Rules: 1.2, 1.18, 1.22, 1.36, Rule 2 introductory text, 2.1, 2.1.1, 2.1.1.1, 2.1.1.2, 2.1.2.1, 2.2.1, 2.2.2, 2.2.10, 2.2.7 (a through e), 2.3, 2.4, 2.6, 2.7.1, 3.1.4, 3.3, 3.3.1, 4.4, 4.5.2, 4.6, 4.7, 4.27.2, 5.1.2, 6.11.1.1. Rules were renumbered accordingly to accommodate the changes listed above. These changes were adopted on October 8, 2024, and are effective on December 31, 2024.

Rules updated to implement a new fee schedule. Added Rules: 3.6.5(D), 3.6.7. Deleted: Rule 3.8.4. Amended Rules: 3.1.1, 3.1.1.1, 3.1.2, 3.1.6, 3.2.1, 3.2.2, 3.3 and subrules, 3.4, 3.5 and subrules, 3.6 and subrules, 3.7. Rules were renumbered accordingly to accommodate the changes listed above. These changes were adopted on June 10, 2025, and are effective on July 31, 2025.

Rules updated to incorporate HB25-1273 and SB25-002 modifications. Added Rules: 2.1.7, 3.1.4.1, 6.2.4, 6.10.2 and subrules, 6.10.3, 6.10.3.1, 6.13.2 and subrules. Amended Rules: 1.1, 1.2, 1.6, 1.11, 1.17, 1.19, 3.14, 6.10, 6.12.3, 6.25, 7.1.1(G), 7.1.2(C), 7.1.2(F), Rule 8 introductory text, 8.5. Rules were renumbered accordingly to accommodate the changes listed above. These changes were adopted on January 20, 2026, and are effective on March 17, 2026.

Rules updated to incorporate SB25-002 modifications. Deleted Rules: 1.2, 2.2.4, 2.2.5, 2.2.6, 2.2.7, 2.14.2 and subrules, 3.1.1.1, 3.1.2, 3.8.4, 4.9.5, 4.15.1, 4.15.2, 4.15.3, 4.17.3, 4.17.4.1, 4.19.2, 6.11.1.2, 9.3(C). Moved Rules: Rules 4.31 through 4.33 were substantially duplicated in new Rule 5. The following Rules were moved in their entirety and renumbered: Rule 5 (Sellers) was moved to Rule 9; Rule 6 (Installations and Inspections) was moved to Rule 10; Rule 7 (Foundations) was moved to Rule 11; Rule

8 (Enforcement) was moved to Rule 12. Added Rules: 1.2, 1.3, 1.6, 1.9, 1.14, 1.15, 1.16, 1.17, 1.18, 1.19, 1.20, 1.35, 1.36, 1.39, 2.1.10, 2.1.12, 2.2.1, 2.2.2, 2.2.11, 2.2.19, 2.2.21, 2.2.22, 2.3.4, 2.6.4, 2.6.5, 2.8 and subrules, 2.9, 2.10, 2.11, 2.12, 2.13, 2.14, 2.15 and subrules, 2.16 and subrules, 2.24, 3.1.5, 3.1.6, 3.2, 3.2.1, 3.8 and subrules, 4.2, 4.2.1, 4.8, 4.8.1, 4.11, 4.17, 4.30, 4.33.1, 4.34, 4.35.2, 4.36, 4.37, 4.38, 4.39, 4.40, 4.40.1, 4.41, 4.42, 4.43, 4.43.1, 4.44, 4.45, 4.45.1, Rule 5, Rule 6, Rule 7, Rule 8, 9.8, 9.11, 9.15, 9.16, 9.17, 10.3, 10.4, 10.5, 10.5.1, 10.21, 10.34.2, 10.36, 10.43, 10.44, 10.45, 11.2, 12.3 and subrules, 12.6. Amended Rules: Rule 1, Rule 2 introductory text, 2.1, 2.1.1.3, 2.1.2.1, 2.1.4, 2.1.6, 2.1.7, 2.1.8, 2.1.11, 2.1.13, 2.1.14, 2.2, 2.2.1, 2.2.2, 2.2.3, 2.2.4, 2.2.5, 2.2.6, 2.2.7, 2.2.8, 2.2.9, 2.2.10, 2.2.25, 2.3, 2.3.1, 2.4, 2.5, 2.5.3.1, 2.6, 2.6.1, 2.7, 2.17, 2.18, 2.19, 2.20, 2.21, 2.22, 2.23, 2.24, Manufactured Home and Tiny Home Installation Standards introductory text, 2.23, 2.23.1, 2.23.1.1, 2.23.1.3, 3.1 and subrules, Rule 3, 4.1, 4.1.3, 4.1.3.1, 4.1.4, 4.3, 4.5, 4.6, 4.6.2 (1), 4.7, 4.9, 4.10, 4.12, 4.12.1, 4.12.2, 4.12.4, 4.12.4(D), 4.12.5, 4.14, 4.15.1, 4.15.5, 4.15.6.1, 4.16, 4.18, 4.19, 4.21.1.1, 4.21.2, 4.21.3, 4.21.4, 4.22, 4.23, 4.23.1.1, 4.24, 4.25, 4.26, 4.28, 4.31, 4.31.1.1, 4.31.1.2, 4.31.1.3, 4.31.1.3.1, 4.31.2, 4.31.2.1, 4.31.2.5, 4.31.4, 4.31.6, 4.32 and subrules, 4.33, 4.33.1, 4.35, 4.35.2, 4.35.3, 4.35.4, 4.35.4.1, 9.2, 9.3, 9.3(B), 9.4(C)(1), 9.4(C)(2), 9.7, 9.9, 9.12, 9.13, 9.14, Rule 10 title, 10.1, 10.1.2, 10.2, 10.2.1, 10.2.2, 10.2.4, 10.6, 10.6.2, 10.7, 10.8.1.2(A), 10.9, 10.12, 10.13.1, 10.13.2, 10.13.2.1, 10.13.2.3, 10.13.2.4, 10.13.2.5, 10.13.2.7, 10.14.3, 10.14.3.1, 10.15.1.1, 10.15.1.1(A), 10.15.1.1(G), 10.15.1.1(I), 10.15.1.1(K), 10.15.2, 10.15.2(C), 10.15.2(E), 10.15.2(H), 10.16.1, 10.16.3, 10.17, 10.17.1, 10.17.2 and subrules, 10.18 and subrules, 10.19, 10.19.1, 10.20, 10.22, 10.26.3, 10.28(E), 10.30, 10.31(A)(7), 10.31(B)(4), 10.31(B)(7), 10.34, 10.34.1, 10.35.2, 10.37, 10.37.1, 10.38, 10.39, 10.40, Rule 11 introductory text, 11.1, 11.1.1, 11.1.2, 11.1.3, 11.33, 11.4, 11.5, Rule 12 introductory text, 12.1, 12.1.1, 12.1.2, 12.2, 12.3.2, 12.4, 12.5. Rules were renumbered accordingly to accommodate the changes listed above. These changes were adopted on May 5, 2026, and are effective on June 30, 2026.

Editor's Notes

History

New rule eff. 07/01/2018.

Rules 1.23-1.25, 2.1, 2.1.1.1, 2.2, 2.2.1, 2.2.2, 2.2.25-2.2.27, 2.3, 2.4, 2.5, 2.5.2, 2.6, 2.7.4, 2.7.7, 4.1, 4.21, 4.23, 4.24 eff. 11/30/2019.

Rules 5.8, 6.15, 7.8, 7.9 emer. rules eff. 04/01/2020; expired 07/30/2020.

Rules 5.8, 6.15.1, 7.3, 7.5-7.8 emer. rules eff. 05/12/2020; expired 09/09/2020. Rule 7.5 repealed emer. rule eff. 05/12/2020; expired 09/09/2020.

Rules 5.8, 6.15.1 emer. rules eff. 06/09/2020.

Rules 5.8, 5.8.1, 6.15.1, 6.15.1.1 emer. rules eff. 07/14/2020.

Rules 5.8, 5.8.1, 6.15.1, 6.15.1.1 emer. rules eff. 09/08/2020; expired 01/06/2021.

Rules 7.3, 7.5-7.7 eff. 09/14/2020. Rule 7.5 repealed eff. 09/14/2020.

Rules 5.8, 5.8.1, 6.15.1, 6.15.1.1 emer. rules eff. 04/13/2021.

Rules 5.8, 5.8.1, 6.15.1, 6.15.1.1 emer. rules eff. 05/11/2021; expired 09/08/2021.

Rule 2.5.3 emer. rule eff. 07/13/2021.

Rules 1, 2.1.1.1, 2.5, 2.5.3, 2.12, 3.1.3, 3.6, 3.7, 4.1, 4.7, 4.14, 4.15.1, 4.25, 4.26, 4.27.8, 4.27.9, 4.27.11.1, 5, 6, 7 eff. 09/14/2021.

Entire rule eff. 06/30/2023.

Rule 2.15.3 emer. rule eff. 10/24/2023; expired 02/21/2024.

Rule 2.15.3 eff. 04/15/2024.

Rules 1, 2, 3.1.4, 3.3, 3.9, 4.1.3, 4.1.4, 4.4, 4.5.2, 4.6, 4.7, 4.17.1.1, 4.17.4.1, 4.27.2, 4.27.2.5, 4.33.5, 4.33.8(O), 5.1.2, 6.1, 6.2.1, 6.5.1, 6.11.1.1, 6.31-6.36, 7, 8 eff. 12/31/2024.

Rule 3 eff. 07/31/2025.

Rules 1.1, 1.2, 1.6, 1.11, 1.16.1, 1.17, 1.18, 1.19, 1.26, 2.1.7-2.1.12, 2.3, 3.1.4, 3.1.4.1, 5.3, 5.4, 6.2.4, 6.10, 6.11.1.3, 6.12.3, 6.13.2, 6.25, 7.1.1(G), 7.1.2(F), 8 Appendix A, Appendix B, eff. 03/17/2026.

Entire rule eff. 06/30/2026.